

Regulation (EU) No 910/2014, consolidated version of 18 October 2024
eIDAS and eIDAS 2.0

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This document has no legal effect. Only the text published in the Official Journal of the European Union is authentic.

How to read a norm block

Every provision is one block with the same fields in the same order. Modality is colour and shape; priority is position at the page edge. The two codes never share a channel. 'Wallet' is used throughout for the European Digital Identity Wallet, the term defined in Article 3(42); quoted wording always keeps the official full term.

MODALITY

SHALL	Unconditional duty.
SHALL NOT	Prohibition.
MAY	Discretion or a right; no duty unless exercised.
DEFINITION	Defines a term; imposes no duty. The most common source of error.
COMMISSION MANDATE	Empowerment to adopt an implementing or delegated act.
REFERENCING PROVISION	Applies other articles by reference.
LEGAL EFFECT	Non-discrimination rule or legal presumption; addressed to courts.

PRIORITY

L1	Core material; asked in conformity assessments.
L2	Important for understanding the system.
L3	Procedural and peripheral provisions.

MARKS ON A REFERENCE

✓	Wording checked character-for-character against the official English text.
●	A summary in this manual's own words; nothing is quoted.
	No mark: the reference is explained, but no wording is quoted or asserted.

A

Electronic Identification

Chapter II · Articles 5a to 5f

SHALL

■ L1

Art. 5a(1)

TOPIC **Obligation to provide the European Digital Identity Wallet**ADDRESSEE *Member State*

CONTENT Each Member State (MS) shall provide **AT LEAST ONE** European Digital Identity Wallet. Purpose according to the wording: secure, trusted and seamless cross-border access to public **AND** private services, while having full control over their data.

PURPOSE *Without an obligation to provide it, the Wallet would remain a non-binding offer; only the obligation brings about the EU-wide rollout.*

DEADLINE **24 months after the entry into force of the implementing acts under Article 5a(23) AND Article 5c(6) – the period does NOT run from the date of the Regulation**

REFERENCES **Article 5a(23) Implementing act on the core Wallet requirements**

The Regulation's most important empowering provision in practice. The Commission establishes reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – that is the legal basis of the Architecture and Reference Framework. It is at the same time one of the two triggers of the 24-month period under paragraph 1. Numerous further provisions (Article 5b(11), Article 5d(7), Article 5e(5), Article 45d(5), Article 45e(2), Article 45f(6) and (7)) expressly require alignment with that act.

“the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article”

✓ Article 5a(23) eIDAS

Relevance: Without that act, paragraphs 4, 5, 8 and 18 cannot be audited; it is also the anchor for the time limit under paragraph 1.

Article 5c(6) Implementing act on Wallet certification

Establishes reference standards, specifications and procedures for the certification under paragraphs 1, 2 and 3. Together with Article 5a(23), the second trigger of the 24-month period. Without a uniform certification scheme, a Wallet certificate from one Member State would not be reliable in another – and the list under Article 5d would have no common yardstick.

Relevance: The second trigger of the same period – if either of the two acts is missing, the 24-month clock under paragraph 1 does not start to run at all.

Article 5f(2) Acceptance obligation of certain private entities

Covers private relying parties which, under Union law, national law or by contract, are required to carry out strong user authentication – the areas named include transport, energy, banking, financial services, social security, health, digital infrastructure, education and telecommunications. Microenterprises and small enterprises are exempt; acceptance takes place only upon the voluntary request of the user. Time limit: 36 months from the same anchor as Article 5a(1).

“Where private relying parties that provide services, with the exception of microenterprises and small enterprises”

✓ Article 5f(2)

Article 52 eIDAS Entry into force

Staggeres the date of application: the general rule is 1 July 2016; the empowering provisions referred to in paragraph 2, point (a) already apply from 17 September 2014; Articles 7, 8(1) and (2), 9, 10, 11 and 12(1) apply from the date of application of the implementing acts under Article 8(3) and Article 12(8); and the recognition obligation under Article 6 takes effect only three years thereafter.

KEY POINT

'At least one' – a Member State (MS) may have several, but never zero.

DEFINITION

■ L2

Art. 5a(2)(a)–(c)

TOPIC **The three ways of providing the European Digital Identity Wallet**ADDRESSEE *Member State*

CONTENT Three permissible models: (a) directly by the Member State (MS), (b) under a mandate from the MS, (c) independently of the MS but recognised by it. No ranking, no preference.

PURPOSE *Permits private Wallet providers without giving up the responsibility of the State – in all three cases the Member State remains the guarantor.*

REFERENCES

REFERENCES Article 5a(14)

User control and logical separation Prohibits the Wallet provider from collecting usage information that is not necessary and from combining Wallet data with data from its own other services or from third-party services. The provider must in addition keep the data logically separate from all other holdings. Where provision is private under paragraph 2, point (b) or (c), Article 45h(3) (functional separation) applies in addition, mutatis mutandis. This is the only paragraph outside paragraphs 4, 5 and 8 that is expressly certified.

“Personal data relating to the provision of the European Digital Identity Wallet shall be kept logically separate from any other data held by the provider of the European Digital Identity Wallet”

✓ Article 5a(14)

Article 45h(3) eIDAS Functional separation

Requires providers to deliver qualified electronic attestation of attributes services in such a way that they are functionally separate from their other services. Via Article 5a(14), that provision applies mutatis mutandis to private Wallet providers as well.

Relevance: It applies only where provision is private under paragraph 2, point (b) or (c), and adds functional separation to logical separation.

Article 4 eIDAS

Internal market principle Prohibits Member States from restricting the provision of trust services from another Member State for reasons falling within the scope of the Regulation. Paragraph 2 requires that products and services lawfully provided in one Member State be able to circulate freely in the internal market. The general rule is spelled out for qualified services in Article 24a.

Article 46a eIDAS Supervision of the Wallet framework

Requires Member States to designate supervisory bodies for Wallet providers and to notify them to the Commission. Those bodies monitor compliance with the requirements, may require evidence and may order measures. Before eIDAS 2.0 there was no comparable supervisory structure for the electronic identification (eID) pillar.

KEY POINT

State, mandate, recognition – three routes, one responsible party.

SHALL

■ L2

Art. 5a(3)

TOPIC Open-source obligation for the source code

ADDRESSEE *Wallet provider / Member State*

CONTENT The source code of the **APPLICATION SOFTWARE COMPONENTS** shall be open-source licensed. Exception: for duly justified reasons a Member State (MS) may provide that the source code of specific components other than those installed on user devices is **NOT** disclosed (server side).

PURPOSE *Verifiability instead of a leap of faith – the security of an identity application must be publicly auditable.*

REFERENCES Article 5c Certification of the Wallet

Provides that the Wallet and the underlying electronic identification (eID) scheme are certified by designated conformity assessment bodies, and divides up the assessment: cybersecurity requirements via the schemes under the Cybersecurity Act, everything else via national certification schemes, the drafts of which are to be submitted to the Cooperation Group. In addition, it governs the five-year limit with a two-yearly vulnerability assessment, the optional certification under the GDPR, the implementing act and a delegated act on the criteria for the assessment bodies.

KEY POINT

Client open, server may stay closed – but only with justification.

SHALL

■ L1

Art. 5a(4) intro

TOPIC User functions – principle

ADDRESSEE *Wallet (technical) / Wallet provider*

CONTENT The European Digital Identity Wallet **SHALL** enable the user to perform functions (a) to (g) in a manner that is user-friendly, transparent and traceable by the user. Points (a) to (g) are **CUMULATIVE**.

PURPOSE *A Wallet that is secure but unusable will not be used – here usability is a legal obligation, not an optional extra.*

REFERENCES Article 5a(23) Implementing act on the core Wallet requirements

The Regulation's most important empowering provision in practice. The Commission establishes reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – that is the legal basis of the Architecture and Reference Framework. It is at the same time one of the two triggers of the 24-month period under paragraph 1. Numerous further provisions (Article 5b(11), Article 5d(7), Article 5e(5), Article 45d(5), Article 45e(2), Article 45f(6) and (7)) expressly require alignment with that act.

“the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article”

✓ Article 5a(23) eIDAS

Relevance: Without that act, paragraphs 4, 5, 8 and 18 cannot be audited; it is also the anchor for the time limit under paragraph 1.

KEY POINT

Paragraph 4 = what the USER can do. Paragraph 5 = what the TECHNOLOGY must be able to do.

SHALL		L1	Art. 5a(4) (a)
TOPIC	Managing attributes + selective disclosure		
ADDRESSEE	<i>User (entitled) / Wallet</i>		
CONTENT	Securely requesting, obtaining, selecting, combining, storing, deleting, sharing and presenting electronic attestations of attributes (EAA) and person identification data – under the SOLE control of the user, online and, where appropriate, in offline mode. Selective disclosure SHALL be possible.		
PURPOSE	<i>Data minimisation put into practice: proof of age without a date of birth, proof of residence without a street address.</i>		
REFERENCES	Article 5b(3) Prohibition of over-asking Makes the registration information under paragraph 2, point (c) legally binding: the registered scope of data is at the same time the maximum permissible scope. Purpose limitation under data protection law thereby becomes enforceable technically and by supervision for the first time, instead of merely being asserted. “shall not request users to provide any data other than that indicated pursuant to paragraph 2, point (c)” ✓ Article 5b(3) Article 45g eIDAS Issuance of electronic attestations of attributes to Wallets Paragraph 1 requires ALL providers of electronic attestations of attributes to enable Wallet users to request, obtain, store and manage them irrespective of the Member State of provision. Paragraph 2 requires in addition – but only of providers of QUALIFIED electronic attestations of attributes – an interface to the Wallet. Without that bridge the Wallet would remain empty.		
KEY POINT	Selective disclosure is the core: prove age without disclosing the date of birth.		

SHALL		L2	Art. 5a(4) (b)
TOPIC	Pseudonyms		
ADDRESSEE	<i>User / Wallet</i>		
CONTENT	Generating pseudonyms and storing them ENCRYPTED and LOCALLY within the European Digital Identity Wallet.		
PURPOSE	<i>Pseudonyms are effective in data protection terms only if they are not held by the provider – local + encrypted is the condition.</i>		
REFERENCES	Article 5b(9) Responsibility for validation and protection of pseudonyms Places responsibility for the authentication and validation of the data presented on the relying party – not on the Wallet provider. The second sentence also prohibits refusing the use of pseudonyms unless a legal provision requires identification by real name. Article 5 is thereby protected against being circumvented in practice. Article 5 eIDAS Use of pseudonyms A single, unnumbered sentence: without prejudice to specific identification obligations and to the legal effect of pseudonyms under national law, the use of pseudonyms chosen by the user shall not be prohibited in electronic transactions. The Article has NO paragraphs. It is given specific effect in Article 5a(4), point (b), Article 5b(9) and Article 32(1), point (e). Article 2 eIDAS Scope Covers notified electronic identification (eID) schemes, the Wallets provided by the Member States and trust service providers established in the Union. Expressly NOT covered are trust services provided, under national law or under an agreement, exclusively within a closed group of participants – enterprise-internal PKI therefore falls outside. Paragraph 3 makes clear that the Regulation does not affect national contract law or the GDPR.		
KEY POINT	Pseudonym = local + encrypted. Held server-side, it would not be one.		

SHALL		L2	Art. 5a(4) (c)
TOPIC	European Digital Identity Wallet-to-European Digital Identity Wallet interaction		
ADDRESSEE	<i>User / Wallet</i>		
CONTENT	Securely authenticating ANOTHER person's European Digital Identity Wallet and receiving and sharing person identification data (PID) and electronic attestations of attributes (EAA) between two Wallets.		
PURPOSE	<i>Person-to-person attestations (tenancy agreement, contract of sale, power of attorney) without a detour via a service provider.</i>		
REFERENCES	Article 5a(5) Mandatory technical characteristics The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, Wallet-to-Wallet, relying party (RP) authentication, verification of authenticity, erasure requests, reporting to authorities, creation of qualified electronic signatures) – in effect the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes (EAA), point (d) mandates assurance level high (LoA high) and point (g) the free-of-charge qualified electronic signature for natural persons.		

KEY POINT

The Wallet is not only an identity document, but also a counterparty.

SHALL

■ L1

Art. 5a(4) (d)

TOPIC **Dashboard and transaction log**ADDRESSEE *User / Wallet*

CONTENT Access to a log of **ALL** transactions via a common dashboard, so that the user can (i) view all relying parties (**RP**) and the data shared, (ii) easily request erasure pursuant to Article 17 GDPR, (iii) easily report unlawful or suspicious requests for data to the national data protection authority.

PURPOSE *Without a transparency tool the user cannot exercise the 'sole control' under paragraph 4, point (a) at all.*

REFERENCES **Article 17 GDPR**

Right to erasure – right to be forgotten Paragraph 1 gives the data subject the right to obtain erasure without undue delay, inter alia where the data are no longer necessary for the purposes of the processing, where consent has been withdrawn, where an objection has been lodged or where the processing was unlawful. Paragraph 2 requires other controllers to be informed where the data have been made public. Paragraph 3 sets out exceptions, for example for legal obligations and for the establishment or exercise of legal claims. Link to eIDAS: Article 5a(4), point (d)(ii) eIDAS requires the user to be able to make that erasure request EASILY, directly from the Wallet dashboard – the right is thus translated into an operating function. Summary of content, not verified against the original text

● summary, not verified

Article 5a(5) Mandatory technical characteristics

The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, Wallet-to-Wallet, relying party (RP) authentication, verification of authenticity, erasure requests, reporting to authorities, creation of qualified electronic signatures) – in effect the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes (EAA), point (d) mandates assurance level high (LoA high) and point (g) the free-of-charge qualified electronic signature for natural persons.

KEY POINT

Dashboard = view, erase, report. Three buttons, not one.

SHALL

■ L1

Art. 5a(4) (e)

TOPIC **Signing and sealing from the European Digital Identity Wallet**ADDRESSEE *User / Wallet*

CONTENT Signing by means of qualified electronic signatures or sealing by means of qualified electronic seals.

PURPOSE *Connects the electronic identification (eID) pillar (Chapter II) directly with the trust services pillar (Chapter III) – the Wallet becomes a signature application.*

REFERENCES **Article 5a(5) Mandatory technical characteristics**

The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, Wallet-to-Wallet, relying party (RP) authentication, verification of authenticity, erasure requests, reporting to authorities, creation of qualified electronic signatures) – in effect the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes (EAA), point (d) mandates assurance level high (LoA high) and point (g) the free-of-charge qualified electronic signature for natural persons.

Article 25 eIDAS

Legal effects of electronic signatures Contains two sentences of far-reaching significance: paragraph 1 prohibits denying an electronic signature legal effect and admissibility as evidence solely on the ground that it is in electronic form or that it does not meet the requirements for qualified electronic signatures. Paragraph 2 gives the qualified electronic signature the equivalent legal effect of a handwritten signature. The former paragraph 3 was deleted by eIDAS 2.0.

Article 29a eIDAS Qualified service for the management of remote electronic signature creation devices

Makes the server-side management of signature keys a qualified trust service in its own right, subject to three conditions: generation or management of the electronic signature creation data on behalf of the signatory; duplication of that data solely for back-up purposes, at the same level of security and in no more copies than strictly necessary; and compliance with all requirements set out in the certification report under Article 30. Grandfathering applies until 21 May 2026.

KEY POINT

The Wallet is the bridge between Chapter II and Chapter III.

SHALL

□ L3

Art. 5a(4) (f)–(g)

TOPIC **Data export and data portability**ADDRESSEE *User / Wallet*

CONTENT (f) Download of the user's data, electronic attestations of attributes (EAA) and configurations – to the extent technically feasible. (g) Exercise of the user's rights to data portability.

PURPOSE *Prevents lock-in to a single Wallet provider; implements Article 20 of Regulation (EU) 2016/679 (GDPR) in the context of the Wallet.*

REFERENCES **Article 20 GDPR Right to data portability.**

The data subject may receive the personal data concerning him or her in a structured, commonly used and machine-readable format and transmit that data to another controller, provided that the processing is based on consent or on a contract and is carried out by automated means. Where technically feasible, there is a right to have the data transmitted directly from one controller to another. Relationship to eIDAS: Article 5a(4), points (f) and (g), eIDAS implements this for the Wallet – point (f) being qualified by 'to the extent technically feasible', point (g) not. The purpose is to avoid lock-in to a Wallet provider. Summary of content, not verified against the original text

● summary, not verified

KEY POINT

Point (f) is qualified ('to the extent technically feasible'), point (g) is not.

SHALL

■ L1

Art. 5a(5) intro

TOPIC **Mandatory technical characteristics – principle**

ADDRESSEE *Wallet (technical) / Wallet provider*

CONTENT The European Digital Identity Wallet **SHALL IN PARTICULAR** meet the requirements in points (a) to (g). 'In particular' = not exhaustive; the implementing act under paragraph 23 supplements them.

PURPOSE *Paragraph 4 describes the user-facing view, paragraph 5 the internal technical view – only the two together yield an auditable Wallet.*

REFERENCES **Article 5a(23) Implementing act on the core Wallet requirements for the Wallet.**

The Regulation's most important empowering provision for practical purposes. The Commission establishes reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – this is the legal basis of the Architecture and Reference Framework. It is at the same time one of the two triggers of the 24-month deadline in paragraph 1. Numerous further provisions (5b(11), 5d(7), 5e(5), 45d(5), 45e(2), 45f(6) and (7)) expressly require alignment with that act. Significance here: without that act, paragraphs 4, 5, 8 and 18 cannot be audited; it is at the same time the deadline anchor of paragraph 1.

“the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article”

✓ Article 5a(23) eIDAS

Article 5c(1) Subject matter of certification.

Defines exhaustively what is certified: the conformity of the Wallet AND of the electronic identification scheme with Article 5a(4), (5) and (8), the logical separation under paragraph 14 and, where applicable, the standards referred to in paragraph 24. Everything else in Article 5a is subject to supervision under Article 46a, not to certification. The sequence 4-5-8-14 is the practical mnemonic anchor.

KEY POINT

Remember: what is certified is 4, 5, 8 + 14 – not the whole Article.

SHALL

■ L1

Art. 5a(5)(a)(i)–(xi)

TOPIC **Common protocols and interfaces**

ADDRESSEE *Wallet (technical)*

CONTENT Eleven interface cases: (i) issuance of person identification data (PID)/electronic attestations of attributes (EAA)/certificates; (ii) requesting and validating by relying parties (**RP**); (iii) sharing and presentation (including selectively disclosed data, online/offline mode); (iv) user interaction + display of the EU Digital Identity Wallet Trust Mark; (v) secure onboarding of the user in accordance with paragraph 24; (vi) European Digital Identity Wallet-to-Wallet; (vii) authentication of relying parties in accordance with Article 5b; (viii) verification by relying parties of the authenticity and validity of the Wallet; (ix) requests for erasure pursuant to Article 17 GDPR; (x) reporting to the data protection authority; (xi) creation of qualified electronic signatures (QES)/qualified electronic seals by means of qualified electronic signature creation devices (**QSCD**).

PURPOSE *Without uniform protocols, 27 mutually non-interoperable Wallets would emerge – interoperability would be merely asserted.*

REFERENCES

REFERENCES ARF Architecture and Reference Framework of the Wallet.

Not a legal act, but the technical reference architecture developed in the context of the implementing acts under Article 5a(23) eIDAS. It describes the roles, data models, protocols and trust model of the Wallet, drawing on formats such as ISO/IEC 18013-5 (mobile driving licences) and W3C Verifiable Credentials. Relationship to eIDAS: it fills the eleven interface cases of Article 5a(5), point (a), (i) to (xi), eIDAS with concrete specifications. Only what the implementing act takes over becomes legally binding. Summary of content, not verified against the original text

● summary, not verified

Article 5a(23) Implementing act on the core Wallet requirements for the Wallet.

The Regulation's most important empowering provision for practical purposes. The Commission establishes reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – this is the legal basis of the Architecture and Reference Framework. It is at the same time one of the two triggers of the 24-month deadline in paragraph 1. Numerous further provisions (5b(11), 5d(7), 5e(5), 45d(5), 45e(2), 45f(6) and (7)) expressly require alignment with that act. Significance here: without that act, paragraphs 4, 5, 8 and 18 cannot be audited; it is at the same time the deadline anchor of paragraph 1.

“the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article”

✓ Article 5a(23) eIDAS

KEY POINT

Eleven interfaces, (i) to (xi) – that is the ARF table of contents.

SHALL NOT

■ L1

Art. 5a(5) (b)

TOPIC No feedback to the issuer of the electronic attestation of attributes

ADDRESSEE *Wallet (technical)*

CONTENT The European Digital Identity Wallet **SHALL ENSURE** that, after issuance, **No** information whatsoever about the use of those electronic attestations is provided to trust service providers of electronic attestations of attributes (EAA).

PURPOSE *Prevents the 'phone-home' problem: the issuer of the credential must not be able to observe where the credential is used.*

REFERENCES Article 5a(16)

Unlinkability in the technical framework. Point (a) prohibits providers of electronic attestations of attributes or any other party from obtaining, after issuance of the attestation of attributes, data that would allow transactions or user behaviour to be tracked, linked or correlated. Point (b) requires techniques which ensure unlinkability where identification of the user is not needed. Whereas paragraph 5, point (b), prohibits observation of the use, paragraph 16 prohibits the bringing together of data – technically this leads to techniques such as selective disclosure and zero-knowledge proofs.

Article 45h eIDAS

Additional rules for services of electronic attestation of attributes. Prohibits providers of qualified and non-qualified attestation services from combining personal data from those services with data from other services offered by them or by their business partners. Paragraph 2 requires the logical separation of that data from all other data held; paragraph 3 requires the functional separation of the qualified service from the provider's other services.

KEY POINT

The issuer must not be able to observe. No phone-home.

SHALL

■ L1

Art. 5a(5) (c)

TOPIC Authentication of relying parties

ADDRESSEE *Wallet (technical)*

CONTENT Ensure that relying parties (**RP**) can be authenticated and identified by implementing authentication mechanisms in accordance with Article 5b.

PURPOSE *Mutual authentication: it is not only the user who identifies himself or herself, the service too must identify itself – protection against phishing relying parties.*

REFERENCES Article 5b(7) Common identification mechanism.

Obliges the Member State (MS) to provide a common mechanism for allowing the identification and authentication of relying parties, as referred to in Article 5a(5), point (c). Twenty-seven different procedures would be unmanageable across borders.

Article 5b(8) Self-identification towards the user.

Obliges the relying party to identify itself to the user. Before releasing data, the user is to know to whom the data is being given – protection against phishing and impersonation.

Article 5a(8) Free-of-charge validation mechanisms.

Requires the Member State to provide two free-of-charge verification paths running in opposite directions: point (a) allows verification that a presented Wallet is authentic and valid; point (b) allows the user to verify that the requesting relying party is registered and authentic. Without this two-way verifiability, Article 5b(8) (self-identification of the relying party) could not be verified. Forms part of the subject matter of certification under Article 5c(1).

KEY POINT

Two-way: the user shows the Wallet, the relying party shows its registration.

SHALL ■ L1		Art. 5a(5) (d)
TOPIC	Assurance level 'high' mandatory	
ADDRESSEE	<i>Wallet (technical)</i>	
CONTENT	The European Digital Identity Wallet SHALL meet the requirements set out in Article 8 with regard to assurance level HIGH , in particular as applied to the requirements for identity proofing and verification and for electronic identification means management and authentication.	
PURPOSE	<i>The Wallet is the starting point for qualified electronic signatures and for access to public sector services – a lower assurance level would devalue the entire chain.</i>	
REFERENCES	Article 8(2) eIDAS The three assurance levels. Contains definitions only, no obligations to act – a frequent source of error. The scale is calibrated to the effect against identity misuse: 'low' reduces the risk, 'substantial' reduces it substantially, 'high' prevents it. The substantive requirements only follow from the implementing act under paragraph 3, implemented by Implementing Regulation (EU) 2015/1502. “The assurance levels low, substantial and high shall meet respectively the following criteria” ✓ Article 8(2) Article 24(1a) eIDAS Four methods of identity verification. Exhaustive list: (a) a Wallet or a notified electronic identification means with assurance level high; (b) a certificate of a qualified electronic signature or of a qualified electronic seal issued in accordance with point (a), (c) or (d); (c) other methods which ensure a high level of confidence, the conformity of which is confirmed by a conformity assessment body; (d) physical presence. Point (c) is the route for video identification and comparable remote procedures – but only with confirmation by a conformity assessment body (CAB).	
KEY POINT	Wallet = assurance level high. Always. Without exception.	

SHALL □ L3		Art. 5a(5) (e)
TOPIC	Embedded disclosure policies	
ADDRESSEE	<i>Wallet (technical)</i>	
CONTENT	In the case of electronic attestations of attributes (EAA) with embedded disclosure policies, an appropriate mechanism SHALL inform the user that the requesting relying party (RP) or the requesting user has the permission to access that attestation.	
PURPOSE	<i>The user is to be able to recognise whether a request is legitimate before releasing data.</i>	
REFERENCES	Annex V Annex V – qualified electronic attestations of attributes. Nine mandatory items, (a) to (i). The core is point (d): the attested attributes, including their scope. Point (g) requires – unlike Annexes I and III – a QUALIFIED electronic signature or a qualified electronic seal of the issuing qualified trust service provider (QTSP). Article 5b(2) Minimum content of the relying party's registration. The relying party shall provide the information necessary for authentication, its contact details and – point (c) – the intended use, including an indication of the data to be requested. Point (c) is the anchor of purpose limitation: it defines the permissible scope of requests, to which paragraph 3 binds the relying party.	
KEY POINT	Inform first, then release.	

SHALL ■ L1		Art. 5a(5) (f)
TOPIC	Uniqueness of the person identification data	
ADDRESSEE	<i>Wallet (technical) / Member State (MS)</i>	
CONTENT	The person identification data (PID) available from the electronic identification scheme shall UNIQUELY represent the associated natural or legal person (or the natural person representing that person).	
PURPOSE	<i>Without uniqueness, cross-border identity matching under Article 11a fails – duplicate identities arise.</i>	
REFERENCES		

REFERENCES Article 5a(18)

Notification obligations towards the Commission. Names five items to be notified: the body responsible for the list of relying parties, together with the location of that list; the bodies responsible for the provision of the Wallets; the bodies responsible for associating the person identification data; the mechanism allowing for the validation of that data and of the identity of the relying parties; and the mechanisms by which to validate the authenticity and validity of the Wallet. The Commission makes this available to the public through a secure channel, in electronically signed or sealed form suitable for automated processing.

Article 11a eIDAS Cross-border identity matching. New in eIDAS 2.0.

Obliges Member States, where they are themselves relying parties for cross-border services, to ensure identity matching for natural persons using a notified electronic identification means or a Wallet. Paragraph 2 requires technical and organisational measures for a high level of protection of the matching data and expressly the prevention of user profiling. Paragraph 3 contains the empowerment to adopt an implementing act.

Article 3 eIDAS

Definitions. Contains the legal definitions in points 1 to 57, supplemented by the lettered points inserted by eIDAS 2.0 such as 5a, 16a and 21a. Particularly important in practice: point 3 person identification data, point 5a user, point 6 relying party, point 16 trust service, point 20 qualified trust service provider, point 42 electronic attestation of attributes, point 45 authentic source and point 46 the public sector body responsible for an authentic source.

KEY POINT

Unique means: one person, one data record, resolvable EU-wide.

SHALL

■ L1

Art. 5a(5)(g) , 2nd subpara.

TOPIC Free-of-charge qualified electronic signatures for natural persons

ADDRESSEE *Wallet provider / Member State (MS)*

CONTENT All **NATURAL** persons shall be offered the ability to sign by means of qualified electronic signatures (QES) **BY DEFAULT** and **FREE OF CHARGE**. Second subparagraph: Member States (MS) **MAY** provide for proportionate measures to limit the free-of-charge use to **NON-PROFESSIONAL** purposes.

PURPOSE *Makes the qualified electronic signature practically attainable for private individuals for the first time; the exception prevents undertakings from using the free-of-charge service as business infrastructure.*

REFERENCES Article 25(2) eIDAS Equivalence of the qualified electronic signature with a handwritten signature.

The most consequential sentence of signature law in practice: a qualified electronic signature has the same legal effect as a handwritten signature. Advanced electronic signatures do not achieve that effect – not even on the basis of a qualified certificate. In German law, Section 126a BGB is the counterpart.

“A qualified electronic signature shall have the equivalent legal effect of a handwritten signature”

✓ Article 25(2)

Article 29a eIDAS Qualified service for the management of remote electronic signature creation devices.

Makes the server-side management of signature keys a qualified trust service in its own right, subject to three conditions: generation or management of the electronic signature creation data on behalf of the signatory; duplication of that data for back-up purposes only, at the same security level and in no more copies than strictly necessary; and compliance with all requirements set out in the certification report under Article 30. Grandfathering applies until 21 May 2026.

Article 5a(13) eIDAS Free of charge.

Provides that the issuance, use and revocation of the Wallet shall be free of charge to all natural persons. All three operations are covered, not only issuance.

KEY POINT

Free QES for all natural persons BY DEFAULT – MS MAY limit it to non-professional use.

SHALL

■ L2

Art. 5a(6)

TOPIC Informing users of security breaches

ADDRESSEE *Member State*

CONTENT The Member State shall inform users **WITHOUT DELAY** of any security breach that could have entirely or partially compromised their European Digital Identity Wallet or its contents – in particular where the Wallet has been suspended or revoked pursuant to Article 5e.

PURPOSE *The user must be able to stop relying on a compromised Wallet.*

DEADLINE **without delay**

REFERENCES

REFERENCES Article 5e Security breach of Wallets

Governs the emergency case: suspension without undue delay, immediate withdrawal where the severity so justifies, and information of users, single points of contact, relying parties and the Commission. If the breach is not remedied within three months, the Wallets shall be withdrawn and their validity revoked. Once the breach has been remedied, provision shall be re-established; the Commission shall update the list referred to in Article 5d without undue delay.

Article 46c eIDAS Single points of contact

Requires every Member State to designate, make public and notify to the Commission a single point of contact for trust services, Wallets and notified electronic identification schemes. Cross-border supervision needs a defined contact point; the single point of contact is, among other things, an addressee of the notifications under Article 5e.

KEY POINT

Paragraph 6 = tell the users. Article 5e = suspend the Wallet. Two separate duties.

MAY

□ L3

Art. 5a(7)**TOPIC Additional functionalities under national law****ADDRESSEE** Member State

CONTENT A Member State (MS) **MAY** provide for additional functionalities, including interoperability with existing national electronic identification means. Those additional functionalities **SHALL** comply with Article 5a.

PURPOSE *Permits national value-added services without diluting the harmonised core.*

REFERENCES Article 5f Cross-border reliance and the obligation to accept

Requires the public sector to accept the Wallet wherever it requires electronic identification, and extends this to certain private parties in eleven named sectors as well as to very large online platforms. Microenterprises and small enterprises are exempt, and use follows only upon the voluntary request of the user. In addition, the Article provides for codes of conduct and an assessment of the use of Wallets.

KEY POINT

They may do more – not worse.

SHALL

■ L1

Art. 5a(8)(a)–(b)**TOPIC Free-of-charge validation mechanisms****ADDRESSEE** Member State

CONTENT The Member State shall provide validation mechanisms **FREE OF CHARGE** in order to (a) make the authenticity and validity of the European Digital Identity Wallet verifiable and (b) allow users to verify the authenticity and the identity of registered relying parties (RPs).

PURPOSE *Trust arises only where each side can verify the other independently – and without a cost barrier.*

REFERENCES Article 5a(18)

Notification obligations towards the Commission Names five items to be notified: the body responsible for the list of relying parties, together with the location of that list; the bodies responsible for the provision; the bodies responsible for associating the person identification data; the mechanism for validating those data and the identity of the relying parties; and the mechanisms for validating the authenticity and validity of the Wallet. The Commission makes this information available to the public through a secure channel, in electronically signed form suitable for automated processing.

Article 5b(5) Publication of the registration

Requires the Member State to make the registration information publicly available online in electronically signed or sealed form suitable for automated processing. Only this enables the Wallet to verify by automated means whether a requesting party is registered.

Article 5c(1) Subject matter of certification

Defines exhaustively what is certified: the conformity of the Wallet AND of the electronic identification scheme with Article 5a(4), (5) and (8), the requirement for logical separation laid down in paragraph 14 and, where applicable, the standards referred to in paragraph 24. Everything else in Article 5a is subject to supervision under Article 46a, not to certification. The number sequence 4-5-8-14 is the practical mnemonic anchor.

KEY POINT

Two directions, free of charge: genuine EUDI Wallet? Genuine relying party?

SHALL

■ L2

Art. 5a(9)(a)–(c)**TOPIC Grounds for revocation****ADDRESSEE** Member State

CONTENT The Member State shall ensure that the validity of the European Digital Identity Wallet can be revoked: (a) upon the explicit request of the user, (b) where the security of the Wallet has been compromised, (c) upon the death of the user or the cessation of activity of the legal person.

PURPOSE *An identity without a possibility of revocation is a security risk – in particular in the event of death or theft.*

REFERENCES

REFERENCES Article 5e Security breach of Wallets

Governs the emergency case: suspension without undue delay, immediate withdrawal where the severity so justifies, and information of users, single points of contact, relying parties and the Commission. If the breach is not remedied within three months, the Wallets shall be withdrawn and their validity revoked. Once the breach has been remedied, provision shall be re-established; the Commission shall update the list referred to in Article 5d without undue delay.

KEY POINT User request, compromise, death – three triggers.

SHALL

■ L2

Art. 5a(10)**TOPIC User support and incident reporting****ADDRESSEE** Provider of the Wallet

CONTENT Providers shall ensure that users can **EASILY** request technical support and report technical problems or any other incidents having a negative impact.

PURPOSE Incident detection begins with the user – without a low-threshold reporting channel a compromise goes undetected.

REFERENCES Article 5e(1) Immediate suspension in the event of compromise

Requires the Member State to suspend the provision and the use without undue delay where the Wallet, the validation mechanisms or the underlying electronic identification scheme are breached or compromised in a manner that affects their reliability – with immediate withdrawal where the severity so justifies. Four groups of addressees are to be informed: the users affected, the single points of contact under Article 46c, the relying parties and the Commission.

KEY POINT The user is the first sensor.

SHALL

■ L1

Art. 5a(11)**TOPIC Provision at assurance level high****ADDRESSEE** Member State

CONTENT European Digital Identity Wallets shall be provided under an electronic identification scheme with assurance level **HIGH**.

PURPOSE Anchors the Wallet in the existing electronic identification framework – in law it is an electronic identification means, not a special object.

REFERENCES Article 5a(22)

Exemptions from the electronic identification Articles Disapplies Articles 7, 9, 10, 12 and 12a for the Wallet and the underlying scheme. Instead, the Wallet follows its own, stricter regime under Articles 5a to 5f. Important for the delimitation: Article 11 (liability) does apply, via Article 5a(19), and Article 12b (platform access) is precisely NOT exempted here.

“shall not be subject to the requirements laid down in Articles 7, 9, 10, 12 and 12a”

✓ Article 5a(22)

Article 5a(5) eIDAS Mandatory technical characteristics

The internal view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, Wallet-to-Wallet, relying party authentication, verification of authenticity, erasure requests, reporting to the authority, creation of qualified electronic signatures) – in effect the table of contents of the ARF. Point (b) prohibits any information being provided to the issuer of the electronic attestation of attributes, point (d) mandates assurance level high, and point (g) the free-of-charge qualified electronic signature for natural persons.

Article 9 eIDAS

Notification Governs the content of, and the procedure for, the notification of an electronic identification scheme. The Member State submits the description of the scheme, the assurance levels, the supervision and liability arrangements separately for the issuer and for the party operating the authentication procedure, the competent authorities, the registry responsible for the person identification data, the evidence of interoperability, the description of the authentication and the suspension and revocation arrangements. The Commission publishes the list in the Official Journal and includes amendments within one month.

KEY POINT EUDI Wallet = electronic identification means at assurance level high.

SHALL

■ L2

Art. 5a(12)**TOPIC Security by design****ADDRESSEE** Provider of the Wallet

CONTENT European Digital Identity Wallets shall be equipped with 'security by design'.

PURPOSE Security is to be an architectural feature, not a protective layer bolted on afterwards.

REFERENCES

REFERENCES Article 25 GDPR

Data protection by design and by default Paragraph 1 requires that appropriate measures such as pseudonymisation be taken already when determining the means of processing, in order to implement the principles of Article 5 GDPR effectively. Paragraph 2 requires default settings ensuring that, as a rule, only the personal data necessary for each specific purpose are processed – as regards the amount of data, the extent of the processing, the period of storage and accessibility. Relation to eIDAS: Article 12(3), point (c), eIDAS expressly incorporates privacy and security by design into the interoperability framework; Article 5a(12) eIDAS requires security by design for the Wallet. Summary of content, not verified against the original text

● summary, not verified

Article 5c Certification of the Wallet

Provides that the Wallet and the underlying electronic identification scheme are certified by designated conformity assessment bodies, and splits the assessment: cybersecurity requirements through the schemes under the Cybersecurity Act, everything else through national certification schemes, the drafts of which are to be submitted to the Cooperation Group. In addition it governs the five-year limit with a vulnerability assessment every two years, the optional GDPR certification, the implementing act and a delegated act on the criteria for the conformity assessment bodies.

KEY POINT

Security by design is a legal obligation here, not a best practice.

SHALL

■ L2

Art. 5a(13)**TOPIC Free of charge for natural persons**

ADDRESSEE Member State / provider of the Wallet

CONTENT The issuance, use and revocation of the European Digital Identity Wallet shall be **FREE OF CHARGE** to **ALL** natural persons.

PURPOSE *An identity subject to a charge would make access to public services socially selective.*

REFERENCES Article 5a(5) Mandatory technical characteristics

The internal view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, Wallet-to-Wallet, relying party authentication, verification of authenticity, erasure requests, reporting to the authority, creation of qualified electronic signatures) – in effect the table of contents of the ARF. Point (b) prohibits any information being provided to the issuer of the electronic attestation of attributes, point (d) mandates assurance level high, and point (g) the free-of-charge qualified electronic signature for natural persons.

Article 5a(15) Voluntary use and prohibition of discrimination

The core political condition of the Wallet: no one has to use it, and those who do not use it must not be disadvantaged in their access to services, on the labour market or in their freedom to conduct business. It forms the necessary counterweight to the obligations to accept under Article 5f – the service **SHALL** accept, the user is **NOT** required to use.

“The use of European Digital Identity Wallets shall be voluntary”

✓ Article 5a(15) eIDAS

KEY POINT

Three operations are free: issuing, using, revoking.

SHALL NOT

■ L1

Art. 5a(14)**TOPIC User control, prohibition of tracking, logical separation**

ADDRESSEE Provider of the Wallet

CONTENT Users shall have full control. The provider shall collect **No** information about the use that is not necessary, and shall **NOT** combine person identification data (**PID**) or other European Digital Identity Wallet data with personal data from other services of its own or of third parties, unless the user has expressly requested otherwise. Wallet data shall be kept **LOGICALLY SEPARATE** from any other data stored. Where the Wallet is provided by private parties (paragraph 2, points (b) and (c)), Article 45h(3) applies mutatis mutandis.

PURPOSE *Prevents the State's identity infrastructure from becoming a data source for an advertising or platform business.*

REFERENCES Article 45h(1) eIDAS

Prohibition on combining data from electronic attestations of attributes Prohibits providers of qualified AND non-qualified electronic attestation of attributes services from combining personal data from those services with data from other services offered by themselves OR BY THEIR BUSINESS PARTNERS. The reach beyond the provider's own group of companies is frequently overlooked. Paragraphs 2 and 3 add logical and functional separation.

Article 5a(16)

Unlinkability in the technical framework Point (a) prohibits providers of electronic attestations of attributes or any other party from obtaining, after issuance, data that would allow transactions or user behaviour to be tracked, linked or correlated. Point (b) requires techniques that ensure unlinkability where identification of the user is not necessary. Whereas paragraph 5, point (b), prohibits reading along, paragraph 16 prohibits bringing data together – technically this leads to techniques such as selective disclosure and zero-knowledge proofs.

REFERENCES Article 5c(1) Subject matter of certification

Defines exhaustively what is certified: the conformity of the Wallet AND of the electronic identification scheme with Article 5a(4), (5) and (8), the requirement for logical separation laid down in paragraph 14 and, where applicable, the standards referred to in paragraph 24. Everything else in Article 5a is subject to supervision under Article 46a, not to certification. The number sequence 4-5-8-14 is the practical mnemonic anchor.

Article 12b eIDAS Access to hardware and software features

Requires gatekeepers within the meaning of the Digital Markets Act to provide providers of Wallets and issuers of notified electronic identification means with effective interoperability with, and access to, the same operating system, hardware and software features – such as the secure element and the NFC interface. Pursuant to Article 6(7) DMA, free of charge and irrespective of whether the feature is part of the operating system. Without this provision, two platform operators could technically prevent compliance with the State's obligation to provide. It is enforced through the DMA, not through eIDAS supervision. Summary of content, not verified against the original text

● summary, not verified

KEY POINT

Paragraph 14 is the only paragraph outside 4/5/8 that is expressly certified.

SHALL NOT

■ L1

Art. 5a(15)

TOPIC Voluntary use and prohibition of discrimination

ADDRESSEE Member State / all service providers

CONTENT Use shall be **VOLUNTARY**. Persons who do not use the European Digital Identity Wallet **SHALL NOT** in any way be restricted or placed at a disadvantage in accessing public and private services, in access to the labour market or in the freedom to conduct a business. Other identification means shall remain possible.

PURPOSE *A core political condition of the Regulation – without it the Wallet would amount to a de facto obligation to identify oneself.*

REFERENCES Article 5f Cross-border use and obligation of acceptance

Requires the public sector to accept the Wallet wherever it requires electronic identification, and extends this to certain private parties in eleven named sectors as well as to very large online platforms. Microenterprises and small enterprises are exempt; use takes place only at the voluntary request of the user. In addition, the Article provides for codes of conduct and an evaluation of the use of the Wallet.

KEY POINT

The relying party SHALL accept (5f) – the user is NOT REQUIRED to use (Article 5a(15)).

SHALL NOT

■ L1

Art. 5a(16)(a)–(b)

TOPIC Unlinkability in the technical framework

ADDRESSEE Wallet (technical) / Commission (via implementing act)

CONTENT The technical framework (a) **SHALL NOT** allow providers of electronic attestations of attributes (EAA) or any other party, after issuance, to obtain any data that would allow transactions or user behaviour to be tracked, linked or correlated, unless the user explicitly authorises it; (b) shall enable privacy preserving techniques which ensure **UNLINKABILITY** where identification is not required.

PURPOSE *Protects against the build-up of an EU-wide behavioural profile via the identity infrastructure.*

REFERENCES ARF Architecture and Reference Framework of the Wallet

Not a legal act, but the technical reference architecture developed within the implementing acts under Article 5a(23) eIDAS. It describes the roles, data models, protocols and trust model of the Wallet, drawing on formats such as ISO/IEC 18013-5 (mobile driving licences) and W3C Verifiable Credentials. Relationship to eIDAS: it fills the eleven interface cases of Article 5a(5), point (a)(i) to (xi) eIDAS with concrete specifications. Only what the implementing act takes over becomes legally binding. Summary of content, not verified against the original text

● summary, not verified

Article 5a(5) Mandatory technical characteristics

The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, Wallet-to-Wallet, relying party authentication, verification of authenticity, deletion requests, reporting to authorities, creation of qualified electronic signatures) – in effect the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes, point (d) requires assurance level high, point (g) the qualified electronic signature free of charge for natural persons.

Article 45h eIDAS

Additional rules for services for electronic attestation of attributes Prohibits providers of qualified and non-qualified attestation services from combining personal data from those services with data from other services offered by them or by their business partners. Paragraph 2 requires the data to be kept logically separate from all other data holdings; paragraph 3 requires the qualified service to be functionally separate from the provider's other services.

KEY POINT

Paragraph 5(b) prohibits monitoring, paragraph 16 prohibits aggregating.

SHALL		L1	Art. 5a(17)
TOPIC	GDPR compliance and accountability		
ADDRESSEE	Member State / responsible bodies		
CONTENT	Any processing shall be carried out in accordance with appropriate and effective data protection measures. Compliance of the processing activities with the GDPR SHALL BE DEMONSTRATED . Member States (MS) may adopt national provisions further specifying those requirements.		
PURPOSE	<i>The burden of proof lies with the operator – accountability analogous to Article 5(2) GDPR.</i>		
REFERENCES	Article 5 GDPR Principles relating to processing of personal data Paragraph 1 sets out six principles: lawfulness, fairness and transparency; purpose limitation; data minimisation; accuracy; storage limitation; integrity and confidentiality. Paragraph 2 establishes accountability – the controller SHALL be able to DEMONSTRATE compliance with those principles. Relationship to eIDAS: Article 5b(2), point (c), and Article 5b(3) eIDAS make the purpose limitation of paragraph 1(b) technically enforceable: what has not been stated as an intended use at registration may not be requested. The accountability of paragraph 2 recurs in Article 5a(17) eIDAS as a self-standing obligation to demonstrate compliance. Summary of content, not verified against the original text ● summary, not verified Article 35 eIDAS Legal effects of electronic seals Paragraph 1 contains the prohibition of discrimination, paragraph 2 the presumption of the integrity of the data and of the correctness of the origin claimed, for qualified electronic seals. Unlike the qualified electronic signature, the electronic seal is NOT given the equivalent effect of a handwritten signature – it attests the origin from an organisation, not a person's intention to be legally bound. The former paragraph 3 has been deleted. Article 24 eIDAS Requirements for qualified trust service providers The central catalogue of obligations. Paragraphs 1, 1a and 1b govern the verification of identity (four methods) and of attributes (five methods). Paragraph 2 contains points (a) to (k) – notification obligations, staff, financial resources, information to users, trustworthy systems and cryptography, verifiable storage, risk management, 24-hour notification, protection against forgery, record-keeping, termination plan and certificate database. Paragraphs 3 and 4 govern revocation and certificate status information.		
KEY POINT	Not 'being compliant', but 'demonstrating compliance'.		

SHALL		L2	Art. 5a(18)(a)–(e)
TOPIC	Notification obligations towards the Commission		
ADDRESSEE	Member State / Commission		
CONTENT	The Member State (MS) shall notify, WITHOUT UNDUE DELAY , information about (a) the body responsible for the list of relying parties and the location of that list, (b) the bodies responsible for the provision of the European Digital Identity Wallet, (c) the bodies responsible for associating the person identification data (PID), (d) the mechanism for validating the person identification data and the identity of the relying parties, (e) the mechanisms for validating the authenticity and validity of the Wallet. The Commission shall make this available to the public through a SECURE channel, in electronically signed or sealed form suitable for automated processing.		
PURPOSE	<i>A relying party abroad must be able to establish by automated means which Wallet and which list of relying parties are genuine.</i>		
DEADLINE	without undue delay		
REFERENCES	Article 5b(5) Publication of the registration Requires the Member State to make the registration information publicly available online in electronically signed or sealed form suitable for automated processing. Only this enables the Wallet to verify by automated means whether a requesting party is registered.		

REFERENCES Article 5a(23)

Implementing act on the core Wallet requirements In practice the most important empowering provision of the Regulation. The Commission establishes reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – this is the legal basis of the Architecture and Reference Framework. At the same time it is one of the two triggers of the 24-month time limit in paragraph 1. Numerous further provisions (Article 5b(11), 5d(7), 5e(5), 45d(5), 45e(2), 45f(6) and (7)) expressly require alignment with that act. Significance here: without that act, paragraphs 4, 5, 8 and 18 cannot be audited; it is also the time-limit anchor of paragraph 1.

“the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article”

✓ Article 5a(23) eIDAS

Article 5d Publication of the list of certified Wallets

Requires Member States to inform the Commission and the Cooperation Group without undue delay of certified as well as of withdrawn Wallets, and states the minimum content of that notification. The Commission maintains a machine-readable list published in the Official Journal and incorporates changes within one month. The list of Wallets is to be distinguished from the trusted list of trust service providers under Article 22.

KEY POINT

Five notifications: list, providers, association – plus two validation mechanisms.

REFERENCING PROVISION

■ L2

Art. 5a(19)

TOPIC Liability

ADDRESSEE Member State / Wallet provider

CONTENT Article 11 (liability in the field of electronic identification) applies **MUTATIS MUTANDIS** to the European Digital Identity Wallet – without prejudice to paragraph 22.

PURPOSE *Avoids a separate liability regime; the Wallet follows the electronic identification liability rules.*

REFERENCES Article 5a(22)

Exemptions from the electronic identification Articles Disapplies Articles 7, 9, 10, 12 and 12a for the Wallet and the underlying scheme. The Wallet instead follows its own, stricter regime under Articles 5a to 5f. Important for the delimitation: Article 11 (liability) does apply, by virtue of Article 5a(19), and Article 12b (access to platforms) is precisely NOT exempted here.

“shall not be subject to the requirements laid down in Articles 7, 9, 10, 12 and 12a”

✓ Article 5a(22)

Article 11 eIDAS

Liability in the field of electronic identification Allocates liability over three roles and three points of Article 7: the notifying Member State is liable for point (d) (unambiguous attribution of the person identification data) and point (f) (availability of authentication), the issuer for point (e) (correct attribution of the means), and the operator of the authentication procedure for its incorrect operation. All three cases concern cross-border transactions only. By virtue of Article 5a(19) it applies mutatis mutandis to Wallets as well. Significance here: the Wallet follows the electronic identification liability of Chapter II, not the trust service liability of Article 13.

KEY POINT

EUDI Wallet liability = Article 11 (electronic identification), not Article 13.

REFERENCING PROVISION

■ L1

Art. 5a(20)

TOPIC Partial application of the qualified trust service provider obligations

ADDRESSEE Wallet provider

CONTENT Article 24(2), points (b) and (d) to (h), apply **MUTATIS MUTANDIS** to providers of European Digital Identity Wallets: qualified staff, information to users, trustworthy systems, verifiable storage, risk management (fa), 24-hour notification (fb), protection against forgery, record-keeping.

PURPOSE *Transfers the established catalogue of qualified trust service provider (QTSP) obligations in part to Wallet providers, without turning them into qualified trust service providers.*

REFERENCES Article 24(2) eIDAS Catalogue of obligations of the qualified trust service provider

The central catalogue, in practice the structure of every audit: (a) notification obligations (1 month for changes, 3 months for cessation), (b) qualified and trained staff in accordance with recognised standards, (c) sufficient financial resources or liability insurance, (d) pre-contractual information, (e) trustworthy systems, including suitable cryptographic techniques, (f) verifiable data storage, (fa) risk management, (fb) 24-hour notification, (g) protection against forgery and loss of data, (h) record-keeping beyond the cessation of activities, (i) termination plan, (k) certificate database. Point (j) has been deleted – the gap is intentional. Significance here: only points (b) and (d) to (h) are taken over – this expressly does not make the Wallet provider a qualified trust service provider.

Article 46a eIDAS Supervision of the Wallet framework

Requires Member States to designate supervisory bodies for Wallet providers and to notify them to the Commission. Those bodies monitor compliance with the requirements, may require evidence and may order measures. Before eIDAS 2.0 there was no comparable supervisory structure for the electronic identification pillar.

KEY POINT

(b) and (d) to (h) – NOT (a), (c), (i), (k). The extract is precisely delimited.

SHALL

■ L2

Art. 5a(21)

TOPIC **Accessibility**ADDRESSEE *Wallet provider / Member State*

CONTENT European Digital Identity Wallets shall be made accessible for use by persons with disabilities on an equal basis with other users, in accordance with Directive (EU) 2019/882.

PURPOSE *An infrastructure that is mandatory must not technically exclude any group of persons.*

REFERENCES **Article 15 eIDAS**

Accessibility Requires electronic identification means, trust services AND the end-user products used in the provision of those services to be made accessible in easy-to-understand language – in accordance with the UN Convention on the Rights of Persons with Disabilities and the accessibility requirements of Directive (EU) 2019/882. Older persons and persons with limited access to digital technologies are expressly covered as well. eIDAS 2.0 has deleted the former qualification 'where feasible'.

KEY POINT

Accessible on an equal basis for persons with disabilities – Directive (EU) 2019/882.

DEFINITION

■ L1

Art. 5a(22)

TOPIC **Exemptions from the electronic identification Articles**ADDRESSEE *Member State*

CONTENT For the purposes of the provision of the European Digital Identity Wallet and of the underlying electronic identification scheme, Articles 7, 9, 10, 12 and 12a do **Not** apply.

PURPOSE *With Articles 5a to 5f the Wallet has its own, stricter regime; applying both in parallel would be contradictory.*

REFERENCES **Article 7 eIDAS**

Conditions for notification Eight cumulative conditions, points (a) to (h). Particularly relevant in practice: point (f) requires online authentication that is available across borders and must be free of charge for public services; point (g) requires the description of the scheme to be submitted to the other Member States at least six months before notification. Points (d), (e) and (f) are at the same time the connecting factors for liability under Article 11. Not applicable to Wallets (Article 5a(22)).

Article 9 eIDAS

Notification Governs the content and the procedure for notifying an electronic identification scheme. The Member State transmits the description of the scheme, the assurance levels, the supervisory and liability arrangements separately for the issuer and for the operator of the authentication procedure, the competent authorities, the registry for the person identification data, the evidence of interoperability, the description of the authentication and the arrangements for suspension and revocation. The Commission publishes the list in the Official Journal and incorporates changes within one month.

Article 10 eIDAS Security breach in electronic identification schemes

Requires the notifying Member State, in the event of a breach affecting the reliability, to suspend or revoke cross-border authentication without delay and to inform the other Member States and the Commission. Once the breach is remedied, authentication is to be restored; if it is not remedied within three months, the withdrawal of the scheme is to be notified. The parallel provision for Wallets is Article 5e.

Article 12 eIDAS

Interoperability Requires the notified schemes to be interoperable and describes the framework to be created for that purpose: technology-neutral, based on European and international standards and – new since eIDAS 2.0 – promoting privacy and security by design. The framework covers the reference to the assurance levels, the mapping of the national levels, minimum technical requirements, the minimum data set of person identification data, procedural rules, dispute resolution and common security standards. In addition, the Article governs peer review.

Article 12a eIDAS Certification of electronic identification schemes

Allows the cybersecurity compliance of electronic identification schemes to be notified to be certified by designated conformity assessment bodies under a scheme adopted pursuant to the Cybersecurity Act. The certification is valid for a maximum of five years, subject to a vulnerability assessment every two years, and is withdrawn where a vulnerability is not remedied within three months. The practical incentive is in paragraph 5: certified schemes are exempt from peer review.

Article 11 eIDAS

Liability in the field of electronic identification Allocates liability over three roles and three points of Article 7: the notifying Member State is liable for point (d) (unambiguous attribution of the person identification data) and point (f) (availability of authentication), the issuer for point (e) (correct attribution of the means), and the operator of the authentication procedure for its incorrect operation. All three cases concern cross-border transactions only. By virtue of Article 5a(19) it applies mutatis mutandis to Wallets as well. Significance here: the Wallet follows the electronic identification liability of Chapter II, not the trust service liability of Article 13.

KEY POINT

Not applicable: 7, 9, 10, 12, 12a. Applicable: 11 (via paragraph 19).

COMMISSION MANDATE

■ L1

Art. 5a(23)

TOPIC **Implementing-act empowerment – basis of the ARF**ADDRESSEE *Commission*

CONTENT The Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in **P ARAGRAPHS** 4, 5, 8 and 18. Examination procedure under Article 48(2).

PURPOSE *The substantive Wallet requirements cannot be audited without technical specification – this paragraph is the legal basis of the Architecture and Reference Framework.*

DEADLINE **by 21 November 2024**

REFERENCES **Article 5a(1) Obligation to provide and time-limit anchor**
Establishes the central implementation obligation of Chapter II: every Member State SHALL provide at least one Wallet. The time-limit mechanism is decisive – the 24 months do not run from the date of the Regulation, but from the entry into force of TWO implementing acts: Article 5a(23) (core functions) and Article 5c(6) (certification). As long as either of the two is missing, the period does not start to run. The same anchor governs Article 5f(2) (36 months) and Article 45e(1) as well.

“each Member State shall provide at least one European Digital Identity Wallet within 24 months of the date of entry into force of the implementing acts referred to in paragraph 23 of this Article and in Article 5c(6)”

✓ Article 5a(1)

Article 5c(6) eIDAS Implementing act on Wallet certification

Establishes reference standards, specifications and procedures for the certification under paragraphs 1, 2 and 3. Together with Article 5a(23), the second trigger of the 24-month time limit. Without a uniform certification scheme, a Wallet certificate from one Member State would not be dependable in another – and the list under Article 5d would have no common yardstick. Significance here: the second trigger of the same time limit – if either of the two acts is missing, the 24-month clock in paragraph 1 does not start to run at all.

Article 5b(11)

Implementing act Empowers the Commission to lay down technical and operational specifications and procedures for paragraphs 2, 5 and 6 to 9, and to do so within the Wallet act under Article 5a(23). Without a uniform format, the registration could not be evaluated across borders.

Article 5d(7)

Implementing act on notification formats Empowers the Commission to lay down formats and procedures for the notifications under paragraphs 1, 4 and 5 – within the Wallet act under Article 5a(23). Notifications must be suitable for automated processing, otherwise the procedure does not scale.

Article 5e(5)

Implementing act on security incidents Empowers the Commission to lay down reference standards, specifications and procedures for the measures under paragraphs 1, 2 and 3 – that is, for suspension, withdrawal and reinstatement.

Article 45d(5) eIDAS

Implementing act on attestations of attributes Empowers the Commission to lay down reference standards, specifications and procedures for qualified electronic attestations of attributes – expressly in line with the Wallet act under Article 5a(23). Without that alignment, the attestation could not reach the Wallet.

Article 45e(2) eIDAS

Implementing act on the catalogue of attributes Empowers the Commission to lay down reference standards, specifications and procedures for the catalogue of attributes, the attestation schemes and the verification procedures – taking international standards into account and in line with the Wallet act.

Article 45f(6) eIDAS

Implementing act on PuB-EAA Empowers the Commission to lay down reference standards for electronic attestations of attributes issued by public sector bodies – in line with the Wallet act under Article 5a(23).

KEY POINT

Without the paragraph 23 act there is no ARF – and no 24-month clock.

COMMISSION MANDATE

■ L1

Art. 5a(24)

TOPIC **Implementing act on user onboarding**ADDRESSEE *Commission*

CONTENT Implementing act on reference standards and procedures for the onboarding of users to the European Digital Identity Wallet – either by electronic identification means conforming to assurance level **HIGH** or by electronic identification means conforming to assurance level **SUBSTANTIAL** in conjunction with additional remote onboarding procedures that together meet the requirements of assurance level **HIGH**.

PURPOSE *Without this bridge, citizens without an identity document at assurance level high could not get into the Wallet at all – the rollout would be blocked.*

DEADLINE **no explicit deadline in the wording**

REFERENCES

REFERENCES **Article 5a(5) Mandatory technical characteristics**
The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, Wallet-to-Wallet, relying party authentication, verification of authenticity, erasure request, reporting to the authority, creation of qualified electronic signatures) – in practice this is the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes, point (d) mandates assurance level high, and point (g) the free-of-charge qualified electronic signature for natural persons.

Article 5c(1) Subject matter of certification

Defines exhaustively what is certified: the conformity of the Wallet AND of the electronic identification scheme with Article 5a(4), (5) and (8), with the requirement for logical separation laid down in Article 5a(14) and, where applicable, with the standards referred to in Article 5a(24). Everything else in Article 5a is subject to supervision under Article 46a, not to certification. The number sequence 4-5-8-14 is the practical mnemonic anchor.

Article 8 eIDAS

Assurance levels of electronic identification schemes
Paragraph 1 requires the assurance level attributed to be specified, paragraph 2 defines the scale of low, substantial and high by reference to their effectiveness against the misuse of identity, and paragraph 3 empowers the Commission to lay down minimum requirements in six areas: identity proofing and verification, issuance of the means, the authentication mechanism, the issuing body, other bodies involved, and the technical specifications of the means.

KEY POINT

Substantial + additional procedures = high. The only lawful detour.

SHALL

■ L1

Art. 5b(1)

TOPIC **Registration obligation of relying parties**

ADDRESSEE *Relying party (RP)*

CONTENT Whoever intends to rely upon European Digital Identity Wallets for the provision of public **OR** private services **SHALL REGISTER** in the Member State where it is established.

PURPOSE *Only registered relying parties can be authenticated by the Wallet – registration is the filter against anonymous data harvesting.*

REFERENCES **Article 5a(5) Mandatory technical characteristics**
The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, Wallet-to-Wallet, relying party authentication, verification of authenticity, erasure request, reporting to the authority, creation of qualified electronic signatures) – in practice this is the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes, point (d) mandates assurance level high, and point (g) the free-of-charge qualified electronic signature for natural persons.

Article 5a(8) Free-of-charge validation mechanisms

Requires the Member State to provide two free-of-charge verification routes running in opposite directions: point (a) allows verification of whether a Wallet presented is authentic and valid; point (b) allows the user to verify whether the requesting relying party is registered and authentic. Without this two-way verifiability, Article 5b(8) (self-identification of the relying party) could not be verified. Forms part of the subject matter of certification under Article 5c(1).

Relevance: the registration becomes effective only because the Wallet can verify the registered relying party free of charge.

Article 5b(5) Publication of the registration

Obliges the Member State to make the registration information publicly available online in electronically signed or sealed form suitable for automated processing. Only this enables the Wallet to verify by automated means whether a requesting entity is registered.

Article 5b(7) Common identification mechanism

Obliges the Member State to provide a common mechanism for allowing the identification and authentication of relying parties, as referred to in Article 5a(5), point (c). Twenty-seven different procedures would be unmanageable across borders.

KEY POINT

No access without registration. That is the entry ticket.

SHALL

■ L1

Art. 5b(2)(a)–(c)

TOPIC **Minimum content of the registration**

ADDRESSEE *Relying party (RP)*

CONTENT The registration process shall be cost-effective and proportionate to risk. The relying party shall provide **AT LEAST:** (a) the information necessary for authentication (i the Member State (MS) in which it is established, ii the name and, where applicable, the registration number as stated in an official record, together with the identification data of that official record), (b) contact details, (c) the **INTENDED USE**, including an indication of the data to be requested.

PURPOSE *Point (c) is the anchor of purpose limitation: what is not indicated here may not be requested later.*

REFERENCES

REFERENCES	Article 5b(3) Prohibition of over-asking Makes the registration information under paragraph 2, point (c) legally binding: the registered scope of data is at the same time the maximum permissible scope. This makes purpose limitation under data protection law enforceable in technical and supervisory terms for the first time, instead of merely being asserted. “shall not request users to provide any data other than that indicated pursuant to paragraph 2, point (c)” ✓ Article 5b(3)
	Article 5b(6) eIDAS Duty to update Obliges registered entities to inform the Member State without delay of any change to the registration information – including a change of the intended use and thus of the permissible scope of requests.

Article 5b(11)
Implementing act Empowers the Commission to establish technical and operational specifications and procedures for paragraphs 2, 5 and 6 to 9, by means of the implementing acts on the implementation of the Wallet referred to in Article 5a(23). Without a uniform format, the registration could not be evaluated across borders.

KEY POINT

What is not in point (c) may not be requested under paragraph 3.

SHALL NOT L1		Art. 5b(3)
TOPIC	Prohibition of over-asking	
ADDRESSEE	<i>Relying party (RP)</i>	
CONTENT	Relying parties SHALL NOT request users to provide ANY DATA OTHER THAN that indicated pursuant to paragraph 2, point (c).	
PURPOSE	<i>Makes purpose limitation enforceable in technical and supervisory terms instead of merely asserted.</i>	
REFERENCES	Article 5 GDPR Principles relating to the processing of personal data Paragraph 1 sets out six principles: lawfulness, fairness and transparency; purpose limitation; data minimisation; accuracy; storage limitation; integrity and confidentiality. Paragraph 2 establishes accountability – the controller must be able to DEMONSTRATE compliance with those principles. Link to eIDAS: Article 5b(2), point (c) and Article 5b(3) eIDAS make the purpose limitation of paragraph 1, point (b) technically enforceable: what is not indicated as an intended use at registration may not be requested. The accountability of paragraph 2 recurs in Article 5a(17) eIDAS as a separate obligation to demonstrate compliance. Summary of content, not verified against the original text ● summary, not verified	Article 5b(2) Minimum content of the relying party registration The relying party must provide authentication information, contact details and – point (c) – the intended use, including an indication of the data to be requested. Point (c) is the anchor of purpose limitation: it defines the permissible scope of requests to which paragraph 3 binds the relying party.
		Article 5b(6) Duty to update Obliges registered entities to inform the Member State without delay of any change to the registration information – including a change of the intended use and thus of the permissible scope of requests.
KEY POINT	Registered scope = maximum scope. No adding data later.	

DEFINITION L3		Art. 5b(4)
TOPIC	Other legal provisions left unaffected	
ADDRESSEE	–	
CONTENT	Paragraphs 1 and 2 shall be without prejudice to Union or national law that is applicable to the provision of specific services.	
PURPOSE	<i>Sectoral law (for example anti-money-laundering law, health law) continues to apply with priority.</i>	
REFERENCES	GDPR Regulation (EU) 2016/679 – General Data Protection Regulation Continues to apply in full alongside eIDAS; Article 2(3) eIDAS states this expressly. For the Wallet and for trust services, the decisive provisions are above all the principles relating to processing (Article 5), accountability (Article 5(2), Article 24), data protection by design (Article 25), security of processing (Article 32), notification obligations (Article 33), the impact assessment (Article 35) and liability and penalties (Articles 82 and 83). Link to eIDAS: Article 5a(17) eIDAS expressly requires compliance with the GDPR to be DEMONSTRATED for processing in the Wallet; Article 20(3b) eIDAS makes a notified infringement of the GDPR a ground for withdrawing qualified status. Summary of content, not verified against the original text ● summary, not verified	Article 2(3) eIDAS Relationship with data protection law Clarifies that this Regulation is without prejudice to the General Data Protection Regulation. Where eIDAS regulates processing operations, its requirements are added to the GDPR and do not replace it.
KEY POINT	eIDAS does not displace sectoral law.	

SHALL		L1	Art. 5b(5)
TOPIC	Publication of the relying party registration		
ADDRESSEE	Member State		
CONTENT	The Member State (MS) shall make the information referred to in paragraph 2 PUBLICLY available online in electronically signed or sealed form suitable for automated processing.		
PURPOSE	<i>The Wallet must be able to verify by automated means whether the requesting relying party is registered – this requires a signed, retrievable list.</i>		
REFERENCES	Article 5a(8) Free-of-charge validation mechanisms Requires the Member State to provide two free-of-charge verification routes running in opposite directions: point (a) allows verification of whether a Wallet presented is authentic and valid; point (b) allows the user to verify whether the requesting relying party is registered and authentic. Without this two-way verifiability, Article 5b(8) (self-identification of the relying party) could not be verified. Forms part of the subject matter of certification under Article 5c(1). Relevance: the registration becomes effective only because the Wallet can verify the registered relying party free of charge. Article 5a(18) Notification obligations towards the Commission Names five subjects of notification: the body responsible for the list of relying parties together with the location of that list, the bodies responsible for the provision, the bodies responsible for associating the person identification data, the mechanism for validating that data and the identity of the relying parties, and the mechanisms for validating the authenticity and validity of the Wallet. The Commission makes this information public through a secure channel, in signed form suitable for automated processing. Article 5b(7) Common identification mechanism Obliges the Member State to provide a common mechanism for allowing the identification and authentication of relying parties, as referred to in Article 5a(5), point (c). Twenty-seven different procedures would be unmanageable across borders.		
KEY POINT	Public, signed, machine-readable – otherwise the EUDI Wallet can verify nothing.		

SHALL		L2	Art. 5b(6)
TOPIC	Duty to update		
ADDRESSEE	Relying party (RP)		
CONTENT	Registered relying parties shall inform the Member State (MS) WITHOUT DELAY of any change to the information provided pursuant to paragraph 2.		
PURPOSE	<i>An out-of-date registration either permits impermissible requests or blocks permissible ones.</i>		
DEADLINE	without delay		
REFERENCES	Article 5b(2) Minimum content of the relying party registration The relying party must provide authentication information, contact details and – point (c) – the intended use, including an indication of the data to be requested. Point (c) is the anchor of purpose limitation: it defines the permissible scope of requests to which paragraph 3 binds the relying party. Article 5b(3) Prohibition of over-asking Makes the registration information under paragraph 2, point (c) legally binding: the registered scope of data is at the same time the maximum permissible scope. This makes purpose limitation under data protection law enforceable in technical and supervisory terms for the first time, instead of merely being asserted. “shall not request users to provide any data other than that indicated pursuant to paragraph 2, point (c)” ✓ Article 5b(3) eIDAS		
KEY POINT	If the purpose changes, the registration changes.		

SHALL		L2	Art. 5b(7)
TOPIC	Common identification mechanism		
ADDRESSEE	Member State		
CONTENT	The Member State (MS) shall provide a COMMON mechanism for allowing the identification and authentication of relying parties, as referred to in Article 5a(5), point (c).		
PURPOSE	<i>27 different relying party authentication procedures would be unmanageable for a cross-border Wallet.</i>		
REFERENCES			

REFERENCES Article 5a(5) Mandatory technical characteristics

The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, Wallet-to-Wallet, relying party authentication, verification of authenticity, erasure request, reporting to the authority, creation of qualified electronic signatures) – in practice this is the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes, point (d) mandates assurance level high, and point (g) the free-of-charge qualified electronic signature for natural persons.

Article 5a(8) Free-of-charge validation mechanisms

Requires the Member State to provide two free-of-charge verification routes running in opposite directions: point (a) allows verification of whether a Wallet presented is authentic and valid; point (b) allows the user to verify whether the requesting relying party is registered and authentic. Without this two-way verifiability, Article 5b(8) (self-identification of the relying party) could not be verified. Forms part of the subject matter of certification under Article 5c(1).

Relevance: the registration becomes effective only because the Wallet can verify the registered relying party free of charge.

Article 5b(5) Publication of the registration

Obliges the Member State to make the registration information publicly available online in electronically signed or sealed form suitable for automated processing. Only this enables the Wallet to verify by automated means whether a requesting entity is registered.

KEY POINT

One mechanism for all relying parties, interoperable EU-wide.

SHALL

■ L1

Art. 5b(8)**TOPIC Self-identification towards the user****ADDRESSEE** *Relying party (RP)*

CONTENT Relying parties intending to rely upon European Digital Identity Wallets **SHALL** identify themselves to the **USER**.

PURPOSE *Before releasing data the user should know to whom the data is given – protection against phishing and impersonation.*

REFERENCES Article 5a(5) Mandatory technical characteristics

The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, Wallet-to-Wallet, relying party authentication, verification of authenticity, erasure request, reporting to the authority, creation of qualified electronic signatures) – in practice this is the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes, point (d) mandates assurance level high, and point (g) the free-of-charge qualified electronic signature for natural persons.

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Relevance: the registration becomes effective only because the Wallet can verify the registered relying party free of charge.

KEY POINT

First the service identifies itself, then the user.

SHALL

■ L1

Art. 5b(9)**TOPIC Responsibility for validation + acceptance of pseudonyms****ADDRESSEE** *Relying party (RP)*

CONTENT Relying parties shall be **RESPONSIBLE** for carrying out the authentication and validation of the person identification data (**PID**) and electronic attestations of attributes (EAA) requested from the European Digital Identity Wallet. Relying parties **SHALL NOT** refuse the use of **PSEUDONYMS** where the identification of the user is not required by Union or national law.

PURPOSE *Places the verification duty squarely on the relying party and at the same time protects the right to use pseudonyms under Article 5 against being undermined in practice.*

REFERENCES

REFERENCES	Article 5a(4) The seven user functionalities Describes, from the user's perspective, what the Wallet must be able to do: (a) securely request, store, delete and selectively present attributes, (b) generate pseudonyms and store them encrypted and locally, (c) interact with another person's Wallet, (d) a dashboard with a complete transaction history, including erasure requests and a button for reporting to the data protection authority, (e) sign by means of qualified electronic signatures and seal by means of qualified electronic seals, (f) download data, (g) exercise data portability. Together with paragraphs 5, 8 and 14, this paragraph forms the subject matter of certification under Article 5c(1). Article 5 eIDAS Use of pseudonyms A single, unnumbered sentence: without prejudice to specific identification obligations and to the legal effect given to pseudonyms under national law, the use of pseudonyms chosen by the user shall not be prohibited in electronic transactions. The Article has NO paragraphs. It is given concrete form in Article 5a(4), point (b), Article 5b(9) and Article 32(1), point (e). Relevance: the second sentence of paragraph 9 makes the general right to use pseudonyms enforceable against the relying party.	Article 32 eIDAS Requirements for the validation of qualified electronic signatures Sets out in eight points when a validation may confirm validity: a qualified certificate complying with Annex I at the time of signing, issuance by a qualified trust service provider and validity at that time, correspondence of the validation data, correct provision of the data representing the signatory, clear indication where a pseudonym is used, creation by a qualified electronic signature creation device, integrity of the data, and compliance with Article 26. Paragraph 2 additionally requires that the result be displayed in an understandable way.
KEY POINT	Only a party that can name a legal basis for doing so may refuse a pseudonym.	

	SHALL NOT	L1	Art. 5b(10)
TOPIC	Intermediaries		
ADDRESSEE	Intermediaries acting on behalf of relying parties		
CONTENT	Intermediaries acting on behalf of relying parties SHALL BE DEEMED TO BE relying parties and shall store No data about the CONTENT of the transaction.		
PURPOSE	Prevents an unregulated intermediate data layer from forming between the Wallet and the service.		
REFERENCES	Article 5b(1) Obligation to register Requires anyone intending to rely upon Wallets for the provision of public or private services to register in the Member State in which it is established. Only registered entities can be authenticated by the Wallet. Article 5a(16) Unlinkability in the technical framework Point (a) prohibits providers of electronic attestations of attributes or any other party from obtaining, after issuance of the attestation, data that would allow transactions or user behaviour to be tracked, linked or correlated. Point (b) requires techniques which ensure unlinkability where the attestation of attributes does not require the identification of the user. Whereas paragraph 5, point (b) prohibits the issuer from being informed of use, paragraph 16 prohibits the bringing together of data – technically this leads to techniques such as selective disclosure and zero-knowledge proofs.		
KEY POINT	Deemed a relying party – and yet may store no transaction content.		

	COMMISSION MANDATE	L2	Art. 5b(11)
TOPIC	Empowerment to adopt implementing acts		
ADDRESSEE	Commission		
CONTENT	The Commission shall establish technical specifications and procedures for the requirements referred to in paragraphs 2, 5 and 6 to 9, within the framework of the European Digital Identity Wallet implementing act referred to in Article 5a(23).		
PURPOSE	Without a uniform format, the registration of relying parties is neither machine-readable nor usable across borders.		
DEADLINE	by 21 November 2024		
REFERENCES			

REFERENCES	Article 5a(23) Implementing act on the core Wallet requirements In practice the most important empowering provision of the Regulation. The Commission establishes reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – this is the legal basis of the Architecture and Reference Framework. It is at the same time one of the two triggers of the 24-month deadline in paragraph 1. Numerous further provisions (5b(11), 5d(7), 5e(5), 45d(5), 45e(2), 45f(6) and (7)) expressly require alignment with that act. “the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article” ✓ Article 5a(23)	Article 48(2) eIDAS Examination procedure Refers to Article 5 of the Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission may not adopt the draft. All implementing acts under this Regulation follow this procedure.
KEY POINT	Not paragraphs 1, 3, 4, 10 – the implementing act covers only 2, 5 and 6-9.	

	SHALL L1	Art. 5c(1)
TOPIC	Subject matter of certification	
ADDRESSEE	Conformity assessment body / Member State	
CONTENT	The conformity of the European Digital Identity Wallet AND of the electronic identification scheme under which it is provided with Article 5a PARAGRAPHS 4, 5 and 8, with the requirement of LOGICAL SEPARATION laid down in Article 5a(14) and, where applicable, with the standards referred to in Article 5a(24) shall be certified by conformity assessment bodies DESIGNATED by the Member States (MS).	
PURPOSE	<i>Defines exactly and exhaustively what is certified – everything else in Article 5a is a matter for supervision, not for certification.</i>	
REFERENCES	Article 5a(4) The seven user functionalities Describes, from the user's perspective, what the Wallet must be able to do: (a) securely request, store, delete and selectively present attributes, (b) generate pseudonyms and store them encrypted and locally, (c) interact with another person's Wallet, (d) a dashboard with a complete transaction history, including erasure requests and a button for reporting to the data protection authority, (e) sign by means of qualified electronic signatures and seal by means of qualified electronic seals, (f) download data, (g) exercise data portability. Together with paragraphs 5, 8 and 14, this paragraph forms the subject matter of certification under Article 5c(1). Article 5a(5) Mandatory technical characteristics The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, Wallet-to-Wallet, relying party authentication, verification of authenticity, erasure requests, reporting to the authority, creation of qualified electronic signatures) – in effect the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes, point (d) mandates assurance level high, and point (g) the free-of-charge qualified electronic signature for natural persons. Article 5a(8) Free-of-charge validation mechanisms Requires the Member State to provide two free-of-charge verification paths running in opposite directions: point (a) allows verification of whether a Wallet presented is authentic and valid; point (b) allows the user to verify whether the requesting relying party is registered and genuine. Without this two-way verifiability, Article 5b(8) (self-identification of the relying party) could not be verified. Forms part of the subject matter of certification under Article 5c(1). Article 5a(14) User control and logical separation Prohibits the provider of the Wallet from collecting information about use that is not necessary, and from combining Wallet data with data from other services of its own or of third parties. It must also keep the data logically separate from all other holdings. Where the Wallet is provided by private parties under paragraph 2, point (b) or (c), Article 45h(3) (functional separation) applies mutatis mutandis in addition. This is the only paragraph outside 4, 5 and 8 that is expressly certified. “Personal data relating to the provision of the European Digital Identity Wallet shall be kept logically separate from any other data held by the provider of the European Digital Identity Wallet” ✓ Article 5a(14) eIDAS Relevance: the only paragraph outside 4, 5 and 8 that is expressly included in the scope of certification.	Article 5a(24) Implementing act on user onboarding Empowers the Commission to establish reference standards and procedures for the onboarding of users – either by electronic identification means conforming to assurance level high, or by means conforming to assurance level substantial in conjunction with additional remote onboarding procedures that together meet the requirements of assurance level high. Without this route, citizens without an assurance-level-high identity document could not get into the Wallet. Article 5d Publication of the list of certified Wallets Requires the Member States to notify the Commission and the Cooperation Group without delay of both certified and withdrawn wallets, and states the minimum content of that notification. The Commission maintains a machine-readable list published in the Official Journal and incorporates changes within one month. The list of wallets is to be distinguished from the trusted list of trust service providers under Article 22.

KEY POINT

Scope of certification: 4 – 5 – 8 – 14 (+24). Learn this sequence of numbers by heart.

SHALL

■ L1

Art. 5c(2)

TOPIC **Cybersecurity element via CSA schemes**ADDRESSEE *Conformity assessment body*

CONTENT In so far as requirements are relevant for **CYBERSECURITY**, certification shall be carried out in accordance with the European cybersecurity certification schemes adopted pursuant to Regulation (EU) 2019/881 (Cybersecurity Act) and referred to in the implementing act under paragraph 6.

PURPOSE *Avoids parallel certification and connects to the existing ENISA framework.*

REFERENCES **EUCC European cybersecurity certification scheme based on the Common Criteria**

The first scheme adopted under the Cybersecurity Act. It builds on the Common Criteria and the associated evaluation methodology and covers assurance levels substantial and high. ICT products are certified against protection profiles. Relationship to eIDAS: in practice the likely frame of reference for the cybersecurity elements of Wallet certification under Article 5c(2) eIDAS and of electronic identification scheme certification under Article 12a(2) eIDAS. Summary, not verified against the original text

● summary, not verified

Article 12a(2) eIDAS Link to the Cybersecurity Act

Requires that certification be carried out under a relevant cybersecurity certification scheme adopted pursuant to Regulation (EU) 2019/881, or parts thereof, in so far as that scheme covers the requirements.

KEY POINT

Cyber -> CSA scheme. Non-cyber -> national scheme (paragraph 3).

SHALL

■ L1

Art. 5c(3)

TOPIC **National certification schemes for the remainder**ADDRESSEE *Member State*

CONTENT For requirements that are not relevant for cybersecurity, and for cybersecurity-relevant requirements that are not covered, or only partially covered, by **CSA** schemes, the Member States (MS) **SHALL ESTABLISH** national certification schemes following the requirements set out in the implementing act under paragraph 6. Draft schemes are to be transmitted to the Cooperation Group, which **MAY** issue opinions and recommendations.

PURPOSE *Closes the gap between cybersecurity and the remaining requirements (e.g. usability, data protection architecture).*

REFERENCES **Article 5c(6) Implementing act on Wallet certification**

Establishes reference standards, specifications and procedures for certification under paragraphs 1, 2 and 3. Together with Article 5a(23), the second trigger of the 24-month deadline. Without a uniform certification scheme, a Wallet certificate from one Member State would not be dependable in another – and the list under Article 5d would have no common yardstick.

Article 46e eIDAS European Digital Identity Cooperation Group

Establishes the Cooperation Group, in which the Member States coordinate practical application. It facilitates peer review and the exchange of experience and issues opinions and recommendations – inter alia on the draft national Wallet certification schemes under Article 5c(3) and on the notifications under Article 5d.

KEY POINT

Two worlds of certification, one certificate.

SHALL

■ L1

Art. 5c(4)

TOPIC **Period of validity and vulnerability assessment**ADDRESSEE *Conformity assessment body / provider of the Wallet*

CONTENT Certification shall be valid for **UP TO FIVE YEARS, PROVIDED THAT** a vulnerability assessment is carried out **EVERY TWO YEARS**. Where a vulnerability is identified and **NOT** remedied **IN A TIMELY MANNER**, the certification **SHALL BE CANCELLED**.

PURPOSE *Prevents the 'certificate as a snapshot' – without recurring assessment, any security statement becomes outdated.*

DEADLINE **5 years max. / vulnerability assessment every 2 years**

REFERENCES

REFERENCES **Article 12a(3) eIDAS** **Five years, two years, three months**
 A more precise variant of the 5/2 rule: certification of an electronic identification scheme is valid for up to five years where a vulnerability assessment is carried out every two years; where a vulnerability is not remedied within three months of being identified, the certification shall be cancelled. At the same point Article 5c(4) says only 'in a timely manner', and Article 30(3a) gives no time limit at all – a popular examination topic.
Relevance: the same 5/2 system, but there with an express three-month time limit instead of the indeterminate 'in a timely manner'.

Article 30(3a) eIDAS

Five-year limit for QSCD certifications New in eIDAS 2.0: certification of a qualified electronic signature creation device shall not exceed five years, provided that vulnerability assessments are carried out every two years; where vulnerabilities are not remedied, the certification shall be cancelled. Previously QSCD certificates were in effect open-ended, which was untenable in the face of ageing cryptography.

KEY POINT **5 years – 2 years – cancel. The same 5/2 rule applies in 12a(3) and 30(3a).**

	MAY	□ L3	Art. 5c(5)
TOPIC	Optional GDPR certification		
ADDRESSEE	<i>Provider of the Wallet</i>		
CONTENT	Compliance with the requirements of Article 5a relating to the processing of personal data MAY be certified pursuant to the GDPR.		
PURPOSE	<i>A bridge to Article 42 GDPR – voluntary, but strong evidence in supervisory proceedings.</i>		
REFERENCES	Article 42 GDPR Certification Provides for the establishment of data protection certification mechanisms and of data protection seals and marks, for the purpose of demonstrating compliance with that Regulation. Certification is voluntary, limited to a maximum of three years and does not reduce the responsibility of the controller. Relationship to eIDAS: Article 5c(5) eIDAS expressly allows the data protection related requirements of Article 5a to be certified under the GDPR – a may-provision that facilitates the demonstration required by Article 5a(17). Summary, not verified against the original text ● summary, not verified Article 5a(17) Demonstration of GDPR compliance Requires appropriate and effective data protection measures and expressly requires that compliance of the processing operations with the GDPR BE DEMONSTRATED. This restates, specifically for the Wallet, the accountability obligation of Article 5(2) GDPR. National provisions further specifying its application remain permissible.		
KEY POINT	A may-provision: helpful, not mandatory.		

	COMMISSION MANDATE	■ L1	Art. 5c(6)
TOPIC	Empowerment to adopt implementing acts – certification		
ADDRESSEE	<i>Commission</i>		
CONTENT	Implementing act containing a list of reference standards and, where necessary, specifications and procedures for the certification referred to in paragraphs 1, 2 and 3.		
PURPOSE	<i>Without a uniform certification scheme, a Wallet certificate from Member State (MS) A would not be dependable in MS B. This act is at the same time the SECOND trigger of the 24-month deadline under Article 5a(1).</i>		
DEADLINE	by 21 November 2024		
REFERENCES	Article 5a(1) Obligation to provide and the deadline anchor Establishes the central implementation obligation of Chapter II: every Member State must provide at least one Wallet. The decisive element is the deadline mechanism – the 24 months do not run from the date of the Regulation but from the entry into force of TWO implementing acts: Article 5a(23) (core functionalities) and Article 5c(6) (certification). As long as either one is missing, the period does not begin to run. The same anchor governs Article 5f(2) (36 months) and Article 45e(1). “each Member State shall provide at least one European Digital Identity Wallet within 24 months of the date of entry into force of the implementing acts referred to in paragraph 23 of this Article and in Article 5c(6)” ✓ Article 5a(1) Article 45e(1) eIDAS Verification of attributes against authentic sources Requires the Member States to ensure that, at least for the eleven attributes listed in Annex VI – in so far as they rely on authentic sources within the public sector – electronic verification is possible at the request of the user. Without access to registers, an electronic attestation of attributes would be a mere assertion. Deadline: the same 24-month anchor as Article 5a(1). Article 5f(2) eIDAS Acceptance obligation of certain private entities Covers private relying parties that are required by Union law, national law or contractual obligation to use strong user authentication – the areas mentioned include transport, energy, banking, financial services, social security, health, digital infrastructure, education and telecommunications. Microenterprises and small enterprises are excluded; acceptance takes place only upon the voluntary request of the user. Deadline: 36 months from the same anchor as Article 5a(1). “Where private relying parties that provide services, with the exception of microenterprises and small enterprises” ✓ Article 5f(2)		

KEY POINT

The clock only starts running once BOTH implementing acts are in force: 5a(23) AND 5c(6).

SHALL

L2

Art. 5c(7)

TOPIC Communication of the conformity assessment bodies

ADDRESSEE Member State / Commission

CONTENT Member States shall communicate to the Commission the names and addresses of the designated conformity assessment bodies (CABs); the Commission shall make that information available to all Member States.

PURPOSE *Only bodies that are known can be recognised across borders.*

REFERENCES **Article 12a(6) eIDAS Communication of the assessment bodies**
Requires the Member States to communicate to the Commission the names and addresses of the conformity assessment bodies they have designated. The parallel provisions are found in Article 5c(7), Article 20(1b) and Article 30(2).

Article 30(2) eIDAS Notification of the designated bodies
Requires the Member States to communicate to the Commission the names and addresses of the public or private bodies designated for the certification of qualified electronic signature creation devices; the Commission makes that information available to all Member States.

Article 20(1b) eIDAS Notification of the conformity assessment bodies

Requires the Member States to notify the Commission without undue delay of the names, addresses AND ACCREDITATION details of the conformity assessment bodies, as well as of any changes thereto; the Commission makes that information available to all Member States. The fact that accreditation details are also subject to notification was added by eIDAS 2.0.

KEY POINT

The same notification mechanism appears in 12a(6), 20(1b) and 30(2).

COMMISSION MANDATE

L2

Art. 5c(8)

TOPIC Delegated act on criteria for conformity assessment bodies

ADDRESSEE Commission

CONTENT The Commission shall be empowered to adopt **DELEGATED** acts in accordance with Article 47 establishing specific criteria to be met by the designated conformity assessment bodies (CABs).

PURPOSE *Caution: this is a delegated act (Article 47), not an implementing act (Article 48) – a different procedure and a different right of veto.*

REFERENCES **Article 30(4) eIDAS**
Delegated act on the designated bodies Empowers the Commission to adopt delegated acts in accordance with Article 47 establishing specific criteria to be met by the designated bodies – the same construction as in Article 5c(8) for the conformity assessment bodies for Wallets.

Article 47 eIDAS Exercise of the delegation

Governs the procedure for delegated acts: the duration of the delegation, revocation at any time by the Parliament or the Council, the consultation of experts and the period for objection within which the Parliament or the Council may raise objections. The Regulation refers to Article 47 in only three places: Article 5c(8), Article 24(4b) and Article 30(4).

KEY POINT

47 = delegated, 48 = implementing. Paragraph 8 takes the 47 route.

SHALL

L2

Art. 5d(1)

TOPIC Notification of certified and withdrawn European Digital Identity Wallets

ADDRESSEE Member State

CONTENT Member States shall inform the Commission **AND** the Cooperation Group **WITHOUT UNDUE DELAY** of certified European Digital Identity Wallets and of any **CANCELLATION** of a certification, stating the reasons.

PURPOSE *The revocation must become public just as quickly as the authorisation – otherwise relying parties will continue to rely on a withdrawn Wallet.*

DEADLINE **without undue delay**

REFERENCES

REFERENCES Article 5c(1) Subject matter of certification

Defines exhaustively what is certified: the conformity of the Wallet AND of the electronic identification scheme with Article 5a(4), (5) and (8), with the requirement for logical separation under paragraph 14 and, where applicable, with the standards under paragraph 24. Everything else in Article 5a is subject to supervision under Article 46a, not to certification. The number sequence 4-5-8-14 is the practical mnemonic anchor.

Article 5e(4) Publication of the amendment to the list

Requires the Commission to publish the corresponding amendments to the list referred to in Article 5d in the Official Journal of the European Union without undue delay. Delayed publication would itself be a security problem, because relying parties would continue to rely on a suspended Wallet.

Article 46e eIDAS European Digital Identity Cooperation Group

Establishes the Cooperation Group in which the Member States coordinate practical application. It facilitates peer review and the exchange of experience and issues opinions and recommendations – inter alia on the draft national Wallet certification schemes under Article 5c(3) and on the notifications under Article 5d.

KEY POINT

Notification means: in AND out.

SHALL

■ L2

Art. 5d(2)(a)–(e)

TOPIC Minimum content of the notificationADDRESSEE *Member State*

CONTENT The notification shall include at least (a) the certificate and certification assessment report, (b) a description of the electronic identification scheme, (c) the applicable supervisory regime and the **LIABILITY REGIME**, (d) the responsible authority or authorities, (e) arrangements for suspension or revocation.

PURPOSE *Almost identical in wording to Article 9(1) (notification of electronic identification schemes) – the Wallet follows the same transparency logic.*

REFERENCES Article 9(1) eIDAS

Content of the notification Seven items, points (a) to (g), including the description of the scheme with its assurance levels, the supervisory regime together with the liability regime, set out separately for the issuer and the operator of the authentication procedure, the responsible authorities, the entity managing the registration of the person identification data (PID) and the arrangements for suspension and revocation. Almost congruent with Article 5d(2) for Wallets – the same notification logic in two regimes.

Article 5a(19) Liability reference

Provides that Article 11 shall apply mutatis mutandis – without prejudice to paragraph 22. The Wallet therefore follows the liability regime of electronic identification and not that of trust services under Article 13.

KEY POINT

5d(2) is the twin of 9(1). Learn it once, know it twice.

SHALL

■ L1

Art. 5d(3)

TOPIC List of certified European Digital Identity WalletsADDRESSEE *Commission*

CONTENT The Commission shall establish, publish in the **OFFICIAL JOURNAL** and maintain in a **MACHINE-READABLE** form a list of the certified European Digital Identity Wallets.

PURPOSE *A central, official reference – the counterpart to the trusted list under Article 22.*

REFERENCES Article 9(2) eIDAS Publication of the list of schemes

Requires the Commission to publish the list of notified electronic identification schemes in the Official Journal of the European Union without undue delay. Only that publication triggers the obligation of recognition under Article 6.

Article 22 eIDAS Trusted lists

Requires each Member State to establish, maintain and publish lists of the qualified trust service providers and of the qualified trust services provided by them – in a secured manner, electronically signed or sealed and in a form suitable for automated processing. The information on the body responsible for the list, the place of publication and the signature certificates is to be notified to the Commission without undue delay, and the Commission in turn makes it available in a secured manner and in a form suitable for automated processing.

KEY POINT

EUDI Wallets -> list under 5d. Qualified trust services -> Article 22. Two lists.

SHALL

■ L2

Art. 5d(4)–(6)

TOPIC Removal, updating, deadlinesADDRESSEE *Member State / Commission*

CONTENT	Paragraph 4: a Member State MAY submit a request for removal. Paragraph 5: where there are changes, the Member State shall provide updated information. Paragraph 6: the Commission shall publish the amendments WITHIN ONE MONTH of receipt of the request or of the updated information.
PURPOSE	<i>Sets a hard processing deadline to prevent the list from becoming outdated.</i>
DEADLINE	1 month (Commission)
REFERENCES	Article 9(3) eIDAS One-month deadline for amendments Requires the Commission to publish amendments to the notified information in the Official Journal of the European Union within one month of receipt of the notification. The same one-month deadline applies under Article 5d(6) to Wallets and under Article 31(1) to electronic signature creation devices.
KEY POINT	One month – the same deadline as for electronic identification schemes under Article 9.

COMMISSION MANDATE

□ L3

Art. 5d(7)

TOPIC **Implementing act on formats and procedures**ADDRESSEE *Commission*

CONTENT Implementing act on the formats and procedures for the purposes of paragraphs 1, 4 and 5, within the framework of the implementing act on European Digital Identity Wallets under Article 5a(23).

PURPOSE *Notifications must be capable of automated processing, otherwise the procedure does not scale.*

DEADLINE **by 21 November 2024**REFERENCES **Article 5a(23) Implementing act on the core Wallet requirements for Wallets**

The most important empowering provision of the Regulation in practice. The Commission establishes reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – this is the legal basis of the Architecture and Reference Framework. It is at the same time one of the two triggers of the 24-month deadline in paragraph 1. Numerous other provisions (5b(11), 5d(7), 5e(5), 45d(5), 45e(2), 45f(6) and (7)) expressly require alignment with that act.

“the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article”

✓ Article 5a(23) eIDAS

KEY POINT **Format follows obligation.**

SHALL

■ L1

Art. 5e(1)

TOPIC **Immediate suspension in the event of compromise**ADDRESSEE *Member State*

CONTENT Where the European Digital Identity Wallet, the validation mechanisms referred to in Article 5a(8) or the underlying electronic identification scheme are breached or partly compromised in a manner that affects reliability, the Member State **SHALL SUSPEND** the provision **AND** the use **WITHOUT UNDUE DELAY**. Where justified by the severity, it **SHALL WITHDRAW** the Wallets without undue delay. The following are to be informed: the users affected, the single points of contact under Article 46c, the relying parties and the Commission.

PURPOSE *A compromised Wallet immediately endangers the entire EU-wide network of trust – a standstill is the lesser evil here.*

DEADLINE **without undue delay**REFERENCES **Article 5a(6) Informing users of security breaches**

Requires the Member State to inform users without delay of any security breach that could have entirely or partially compromised their Wallet or its contents – in particular where it has been suspended or revoked pursuant to Article 5e. The obligation is owed to the user and must be distinguished from notification to the authorities.

Article 5a(8) Free-of-charge validation mechanisms

Requires the Member State to provide two free-of-charge verification paths running in opposite directions: point (a) allows verification that a presented Wallet is authentic and valid; point (b) allows the user to verify that the requesting relying party is registered and authentic. Without this two-way verifiability, Article 5b(8) (self-identification of the relying party) could not be verified. It forms part of the subject matter of certification under Article 5c(1).

Article 46c eIDAS Single points of contact

Requires each Member State to designate, publish and notify to the Commission a single point of contact for trust services, Wallets and notified electronic identification schemes. Cross-border supervision needs a defined contact point; the single point of contact is, inter alia, an addressee of the notifications under Article 5e.

Relevance: the single point of contact is one of the four mandatory addressees of the notification.

Article 10 eIDAS Security breach of electronic identification schemes

Requires the notifying Member State, where a compromise affects reliability, to suspend or revoke the cross-border authentication without delay and to inform the other Member States and the Commission. Once the breach is remedied, cross-border authentication is to be re-established; if it is not remedied for three months, the withdrawal of the scheme is to be notified. The parallel provision for Wallets is Article 5e.

KEY POINT

Four addressees: user, single point of contact, relying party, Commission.

SHALL

■ L1

Art. 5e(2)

TOPIC **Withdrawal after THREE months**ADDRESSEE *Member State*

CONTENT If the security breach is not remedied within **THREE MONTHS** of the suspension, the Member State **SHALL WITHDRAW** the European Digital Identity Wallets and **SHALL REVOKE** their validity; the same four groups of addressees are to be informed again.

PURPOSE *Sets a hard upper limit on states of limbo.*

DEADLINE **3 months**

REFERENCES **Article 10(3) eIDAS Withdrawal of the electronic identification scheme after three months**

The mirror image of Article 5e(2). If, after suspension or revocation, the breach is not remedied within three months, the notifying Member State notifies the withdrawal of the scheme; the Commission publishes the amendment in the Official Journal of the European Union without undue delay.

“three months of the suspension or revocation, the notifying Member State shall notify other Member States and the Commission of the withdrawal of the electronic identification scheme”

✓ Article 10(3) eIDAS

Relevance: an identical three-month deadline – the Wallet and a notified electronic identification scheme are treated with equal strictness.

Article 12a(3) eIDAS Five years, two years, three months

A more precise variant of the 5/2 rule: the certification of an electronic identification scheme is valid for up to five years provided that a vulnerability assessment is carried out every two years; where a vulnerability is not remedied within three months of its identification, the certification is to be cancelled. At the same point Article 5c(4) says only ‘in a timely manner’, and Article 30(3a) gives no deadline at all – a popular exam topic.

Article 5a(9)

Grounds for revocation Names three circumstances in which it must be possible to revoke the validity of the Wallet: the explicit request of the user, the compromise of its security, and the death of the user or the cease of activity of the legal person.

Article 3 eIDAS

Definitions Contains the legal definitions in points (1) to (57), supplemented by the letter-suffixed points inserted by eIDAS 2.0, such as (5a), (16a) and (21a). Particularly important in practice: point (3) person identification data, point (5a) user, point (6) relying party, point (16) trust service, point (20) qualified trust service provider, point (44) electronic attestation of attributes, point (46) electronic attestation of attributes issued by or on behalf of a public sector body responsible for an authentic source and point (47) authentic source.

KEY POINT

THREE months, not six – the same limit as Article 10(3).

SHALL

■ L2

Art. 5e(3)

TOPIC **Re-establishment**ADDRESSEE *Member State*

CONTENT Once the breach has been remedied, the providing Member State (MS) shall **RE-ESTABLISH** the provision and the use and shall inform the users, the relying parties (RPs), the single point of contact and the Commission without undue delay.

PURPOSE *The state of emergency must also be capable of coming to an end – with the same transparency.*

DEADLINE **without undue delay**

REFERENCES **Article 10(2) eIDAS**

Re-establishment Requires the notifying Member State to re-establish cross-border authentication once the breach has been remedied and to inform the other Member States and the Commission without undue delay. The state of emergency must also be capable of coming to an end – with the same transparency as its imposition.

KEY POINT

Switching off and switching back on – both routes are subject to notification.

COMMISSION MANDATE

■ L2

Art. 5e(4)–(5)

TOPIC **Publication + implementing act**ADDRESSEE *Commission*

CONTENT Paragraph 4: The Commission shall publish the corresponding amendments to the list referred to in Article 5d in the Official Journal **WITHOUT UNDUE DELAY**. Paragraph 5: implementing act on reference standards, specifications and procedures for the measures referred to in paragraphs 1, 2 and 3.

PURPOSE *The state of the list must mirror the state of security.*

DEADLINE **Paragraph 5: by 21 November 2024**

REFERENCES

REFERENCES Article 5d(3) Official Journal list of certified Wallets

Requires the Commission to establish, publish in the Official Journal and maintain a machine-readable list of certified Wallets. That list is the central official reference and is not to be confused with the trusted list under Article 22.

Article 5a(23) Implementing act on the core Wallet requirements for the Wallet

The most important empowering provision of the Regulation in practice. The Commission lays down reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – this is the legal basis of the Architecture and Reference Framework. At the same time it is one of the two triggers of the 24-month period under paragraph 1. Numerous further provisions (Article 5b(11), Article 5d(7), Article 5e(5), Article 45d(5), Article 45e(2), Article 45f(6) and (7)) expressly require alignment with that act.

“the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article”

✓ Article 5a(23) eIDAS

KEY POINT

The list = the truth. Delayed publication is a security problem.

SHALL

■ L1

Art. 5f(1)

TOPIC Public sector obligation to accept

ADDRESSEE Member States / public sector bodies

CONTENT Where Member States (MS) require electronic identification and authentication for access to an online service provided by a public sector body, they shall **ALSO ACCEPT** European Digital Identity Wallets.

PURPOSE *Without an obligation to accept there would be no pressure to use it – the Wallet needs use cases in order to achieve uptake.*

DEADLINE **no separate deadline – follows Article 5a(1)**

REFERENCES Article 6 eIDAS Mutual recognition

Establishes the obligation to recognise notified electronic identification means from other Member States where the scheme is included in the list published by the Commission, where its assurance level is at least substantial and corresponds to the level required, and where the public sector body itself uses assurance level substantial or high. Recognition must take place no later than twelve months after publication of the list. For assurance level low, recognition is merely optional (a 'may' recognition).

Article 45c eIDAS

An electronic attestation of attributes does not replace electronic identification. Primarily a prohibition subject to authorisation: person identification data from an electronic attestation of attributes (EAA) may not replace the electronic identification, together with authentication, required under national law – unless the Member State expressly permits this. Only then does the legal consequence follow that qualified electronic attestations of attributes from other Member States must also be accepted. The widespread reading of the provision as a mere obligation to accept is incorrect.

KEY POINT

Paragraph 1 the State, 2 private parties except micro/small, 3 very large platforms.

SHALL

■ L1

Art. 5f(2)

TOPIC Obligation of certain private relying parties to accept

ADDRESSEE Private relying parties (except microenterprises and small enterprises)

CONTENT Private relying parties (RPs) – **WITH THE EXCEPTION OF** microenterprises and small enterprises as defined in Recommendation **2003/361/EC** – which are required by Union law, national law **OR BY CONTRACTUAL OBLIGATION** to use **STRONG** user authentication for online identification shall accept the European Digital Identity Wallet. Sectors named: transport, energy, banking, financial services, social security, health, drinking water, postal services, digital infrastructure, education, telecommunications. Only upon the **VOLUNTARY REQUEST OF THE USER**.

PURPOSE *Creates the market: only once banks, insurers and telecommunications operators are required to take the Wallet does it become worthwhile for the citizen.*

DEADLINE **36 months after the entry into force of the implementing acts referred to in Article 5a(23) and Article 5c(6)**

REFERENCES

REFERENCES Article 5a(15) Voluntary use and prohibition of discrimination

The core political condition of the Wallet: nobody is obliged to use it, and those who do not use it may not be placed at a disadvantage in their access to services, in the labour market or in their freedom to conduct business. It forms the necessary counterweight to the obligations to accept under Article 5f – the service SHALL accept, the user NEED NOT use.

“The use of European Digital Identity Wallets shall be voluntary”

✓ Article 5a(15) eIDAS

Relevance: Necessary counterweight: the service must accept, the user need not use.

Article 5a(1) Obligation to provide and deadline anchor

Establishes the central implementation obligation of Chapter II: every Member State must provide at least one Wallet. The decisive element is the deadline mechanism – the 24 months do not run from the date of the Regulation, but from the entry into force of TWO implementing acts: Article 5a(23) (core functionalities) and Article 5c(6) (certification). As long as either of the two is missing, the period does not begin to run. The same anchor also governs Article 5f(2) (36 months) and Article 45e(1).

“each Member State shall provide at least one European Digital Identity Wallet within 24 months of the date of entry into force of the implementing acts referred to in paragraph 23 of this Article and in Article 5c(6)”

✓ Article 5a(1) eIDAS

KEY POINT

24 months to provide (5a(1)) – 36 months for private acceptance (5f(2)).

SHALL

□ L2

Art. 5f(3)

TOPIC Very large online platforms (VLOPs)

ADDRESSEE Providers of very large online platforms as referred to in Article 33 DSA

CONTENT Where **VLOP** providers as referred to in Article 33 of Regulation (EU) 2022/2065 (DSA) require user authentication for access, they shall also **ACCEPT** and **FACILITATE** the use of the European Digital Identity Wallet – only upon the voluntary request of the user and only in respect of the **MINIMUM DATA** necessary for the specific service.

PURPOSE Brings the large platforms on board without opening up additional flows of data to them.

REFERENCES Article 33 DSA Very large online platforms and very large online search engines

Covers services with an average of at least 45 million monthly active recipients in the Union – which corresponds to around 10 percent of the Union population. The Commission designates the providers concerned by decision and publishes the list in the Official Journal; the enhanced obligations apply four months after notification. Relation to eIDAS: the obligation to accept under Article 5f(3) eIDAS attaches exclusively to that formal designation. A platform which reaches the threshold but has not been designated does not fall within it. Summary of content, not verified against the original text

● summary, not verified

DMA Regulation (EU) 2022/1925 – Digital Markets Act Governs the obligations of so-called gatekeepers, that is to say large platform operators which have been formally designated by the Commission. Central to it are the definitions in Article 2 and the conduct obligations in Articles 5 to 7. Enforcement lies with the Commission, not with national supervisory bodies. Relation to eIDAS: Article 12b eIDAS connects directly to it: gatekeepers must grant providers of Wallets and issuers of electronic identification means access to the same operating system, hardware and software features. Enforcement of that eIDAS obligation therefore runs through the DMA and not through eIDAS supervision. Summary of content, not verified against the original text

● summary, not verified

Article 5b(3) Prohibition of over-asking

Makes the registration information under paragraph 2, point (c) legally binding: the scope of data registered is at the same time the maximum permissible scope. Purpose limitation under data protection law thereby becomes technically and supervisorily enforceable for the first time, instead of merely being asserted.

“shall not request users to provide any data other than that indicated pursuant to paragraph 2, point (c)”

✓ Article 5b(3)

Article 12b eIDAS Access to hardware and software features

Requires gatekeepers within the meaning of the Digital Markets Act to enable providers of Wallets and issuers of notified electronic identification means to have effective interoperability with, and access to, the same operating system, hardware and software features – such as the secure element and the NFC interface. Under Article 6(7) DMA this is free of charge and irrespective of whether the feature forms part of the operating system. Without this provision, two platform operators could technically prevent compliance with the State's obligation to provide. It is enforced through the DMA, not through eIDAS supervision.

“gatekeepers shall in particular allow them effective interoperability with, and, for the purposes of interoperability, access to, the same operating system, hardware or software features”

✓ Article 12b eIDAS

KEY POINT

Three EU legal acts interlock: eIDAS, the DSA (paragraph 3), the DMA (Article 12b).

COMMISSION MANDATE

□ L3

Art. 5f(4)–(5)

TOPIC Codes of conduct and evaluation

ADDRESSEE Commission / Member States

CONTENT Paragraph 4: The Commission shall **FACILITATE** the development of codes of conduct with all relevant stakeholders, including civil society. Paragraph 5: **WITHIN 24 MONTHS** after deployment of the European Digital Identity Wallet, the Commission shall assess the demand for, and the availability and usability of, the Wallet, taking into account criteria such as user take-up, cross-border presence, technological development and consumer demand.

PURPOSE Built-in monitoring of success – the basis for a possible tightening of the obligations to accept. Not audit-relevant, but strategic: this is where the pressure for eIDAS 3 arises.

DEADLINE	Paragraph 5: 24 months after deployment of the Wallet
REFERENCES	Article 49 eIDAS Review Requires the Commission to review the application of the Regulation at regular intervals and to report to the Parliament and the Council. eIDAS 2.0 emerged from this built-in review clause; together with the assessment under Article 5f(5) it is the starting point for a possible further amendment.
KEY POINT	Soft law (codes) plus evaluation – the preparatory pattern for the next amendment.